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Exempt from Filing Fees
(Gov. Code, § 6103)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, **v.** **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26CV191136 **RESPONDENTS' VERIFIED ANSWER TO VERIFIED PETITION FOR WRIT OF MANDATE** Dept: 25 Judge: The Honorable Jenna M. Whitman Trial Date: Action Filed: May 29, 2026

Respondents California Highway Patrol ("CHP") and Captain Gerardo Serrato ("Capt. Serrato"), sued in his official capacity, hereby answer the Verified Petition for Writ of Mandate filed by Petitioner in this matter, pursuant to California Code of Civil Procedure section 446, subdivision (a).

Except as specifically admitted herein, Respondents deny each and every allegation in the Verified Petition. Respondents' admissions and denials to the allegations set forth in the Petition/Complaint's numbered paragraphs[1] are as follows:

1. Respondents contend that Paragraph 1 contains legal arguments and therefore does not require a response. To the extent Paragraph 1 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 1.

2. Respondents admit that on April 9, 2026, Petitioner submitted to CHP a pre-completed Form I-918, Supplement B, along with a memorandum and transcript created by Petitioner, a copy of CHP's Arrest—Investigation Report, a copy of "Dublin CHP – 01991 – Detention Certificate" issued to Petitioner pursuant to California Penal Code section 849, and additional exhibits. Except as specifically admitted, Respondents deny the remaining allegations in Paragraph 2.

3. Respondents admit that on April 20, 2026, Respondent Gerardo Serrato denied Petitioner's request that CHP certify his Form I-918, Supplement B. Except as specifically admitted, Respondents deny the remaining allegations in Paragraph 3.

4. Respondents contend that Paragraph 4 contains legal arguments and therefore does not require a response. To the extent Paragraph 4 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 4.

5. Respondents contend that Paragraph 5 contains legal arguments and therefore does not require a response. To the extent Paragraph 5 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 5.

[1] The Petition contains numerous subject headings and sub-headings, some of which consist of legal argument or conclusions to which no response is required. To the extent any heading or sub-heading is deemed an allegation of fact that requires a response, Respondents deny them.

6. Respondents contend that Paragraph 6 contains legal arguments and therefore does not require a response. To the extent Paragraph 6 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 6.

7. Respondents contend that Paragraph 7 contains legal arguments and therefore does not require a response. To the extent Paragraph 7 contains any remaining factual allegations, Respondent deny the allegations in Paragraph 7.

8. Respondents contend that Paragraph 8 contains legal arguments and therefore does not require a response. To the extent Paragraph 8 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 8.

9. Respondents admit that this Court has subject-matter jurisdiction over this action. Respondents admit that California law speaks for itself. Respondents further contend that Paragraph 9 otherwise contains legal arguments that do not require a response. To the extent Paragraph 9 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 9.

10. Respondents admit that Alameda County is the proper venue for this action. Respondents admit that California law speaks for itself. Respondents further contend that Paragraph 10 otherwise contains legal arguments that do not require a response. To the extent Paragraph 10 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 10.

11. Respondents contend that Paragraph 11 contains legal arguments and therefore does not require a response. To the extent Paragraph 11 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 11.

12. Respondents lack sufficient information and knowledge to admit or deny the allegations in Paragraph 12, and on that basis denies the allegations in Paragraph 12.

13. Respondents admit that Respondent California Highway Patrol ("CHP") is an agency of the State of California, that CHP is a "certifying entity" within the meaning of Penal Code section 679.10(a)(1), and that CHP's Dublin Area office is located at 4999 Gleason Drive, Dublin, California 94568. Respondents admit that California law speaks for itself. Respondents

further contend that Paragraph 13 otherwise contains legal arguments that do not require a response. To the extent Paragraph 13 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 13.

14. Respondents admit that Respondent Gerardo Serrato signed, in his official capacity as Captain of the California Highway Patrol Dublin Area, a letter to Petitioner denying Petitioner's request that CHP certify his Form I-918, Supplement B, issued on CHP Dublin Area letterhead. Respondents admit that Respondent Gerardo Serrato is a "certifying official" within the meaning of Penal Code section 679.10(b). To the extent Paragraph 14 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 14.

15. Respondents admit that Lieutenant Gary Paul[2] acknowledged receipt of Petitioner's April 9, 2026 certification request by email on April 10, 2026. Respondents admit that Respondent Serrato's April 20, 2026 denial letter to Petitioner speaks for itself. Respondents deny that Lieutenant Paul is a "certifying official" within the meaning of Penal Code section 679.10(b). To the extent Paragraph 16 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 15.

16. Respondents admit that Petitioner submitted his April 9, 2026 certification request by email to Sergeant Eric Dutra[3] on April 9, 2026. Respondents deny that Sergeant Dutra is a "certifying official" within the meaning of Penal Code section 679.10(b). To the extent Paragraph 16 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 16.

17. Respondents contend that Paragraph 17 contains legal arguments and therefore does not require a response. To the extent Paragraph 17 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 17.

18. Respondents contend that Paragraph 18 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent

[2] Petitioner stipulated to Lt. Paul's dismissal from this action on August 28, 2026. *See* Order Sustaining Demurrer in Part with Leave to Amend.

[3] Petitioner stipulated to Sgt. Dutra's dismissal from this action on August 28, 2026. *See* Order Sustaining Demurrer in Part with Leave to Amend.

Paragraph 18 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 18.

19. Respondents contend that Paragraph 19 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 19 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 19.

20. Respondents contend that Paragraph 20 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 20 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 20.

21. Respondents contend that Paragraph 21 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 21 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 21.

22. Respondents contend that Paragraph 22 contains legal arguments and therefore does not require a response. Respondents admit that federal law speaks for itself. To the extent Paragraph 22 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 22.

23. Respondents contend that Paragraph 23 contains legal arguments and therefore does not require a response. Respondents admit that federal law speaks for itself. To the extent Paragraph 23 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 23.

24. Respondents contend that Paragraph 24 contains legal arguments and therefore does not require a response. Respondents admit that federal and California law speak for itself. To the extent Paragraph 24 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 24.

25. Respondents contend that Paragraph 25 contains legal arguments and therefore does not require a response. Respondents admit that federal and California law speak for itself.

Respondents admit that Respondent CHP is a "certifying entity" within the meaning of Penal Code section 679.10(a)(1). To the extent Paragraph 25 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 25.

26. Respondents contend that Paragraph 26 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 26 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 26.

27. Respondents contend that Paragraph 27 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 27 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 27.

28. Respondents contend that Paragraph 28 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 28 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 28.

29. Respondents contend that Paragraph 29 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 29 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 29.

30. Respondents contend that Paragraph 30 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 30 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 30.

31. Respondents contend that Paragraph 31 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 31 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 31.

32. Respondents contend that Paragraph 32 contains legal arguments and therefore does not require a response. Respondents admit that California law speaks for itself. To the extent Paragraph 32 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 32.

33. Respondents admit that Petitioner is a noncitizen of the United States who held a Class A commercial driver's license issued by the California Department of Motor Vehicles prior to the suspension of that license. Respondents lack sufficient information and knowledge to admit or deny the remaining allegations in paragraph 33, and on that basis deny the remaining allegations.

34. Respondents admit that in the early morning of November 1, 2024, Petitioner was parked on the shoulder of Interstate 580 East in Livermore, Alameda County, California, but deny that Petitioner was lawfully parked, pursuant to California Vehicle Code section 22500, subdivision (h). Respondents admit that the vehicle was not moving when observed by CHP officers. Respondents lack sufficient information and knowledge to admit or deny the remaining allegations in paragraph 34, and on that basis deny the remaining allegations.

35. Respondents admit that in the early morning of November 1, 2024, CHP Officers Santiago Meza-Gonzales and Jose Melano approached Petitioner's parked vehicle for a welfare check. Respondents admit that much of the incident was recorded by a CHP vehicle dashboard camera (also known as a "dashcam"). Respondents admit that Petitioner created a purported transcript of the dashcam video recording and emailed CHP a copy of this purported transcript, which was attached to a memorandum Petitioner created and attached to his certification request. To the extent Paragraph 35 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 35.

36. Respondents deny that "the sole articulated basis for suspicion—the possibility that the cup contained an alcoholic beverage—was definitively eliminated by the officers themselves on the recording." Respondents admit that CHP Officers Meza-Gonzales and Melano expressed concern about a cup of liquid in the vehicle and subsequently identified that liquid as urine. To

the extent Paragraph 36 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 36.

37. Respondents deny that "Petitioner exhibited no objective signs of impairment." Respondents admit that Petitioner correctly identified that he was located in the city of Livermore, read aloud highway signs, and spelled his last name on request. Respondents deny that Petitioner engaged in "coherent and extended conversation about commercial-driver fatigue protocols and his own CDL training and practices." Respondents deny that Petitioner "discussed alternator mechanics with the officers," but admit that Petitioner informed the CHP Officers that his vehicle, a Tesla, was electric and did not have an alternator. Respondents deny that Petitioner adequately performed a Modified Romberg Balance Test. Respondents admit that they did not tell Petitioner that they smelled the odor of alcohol emanating from him or his vehicle. Except as specifically admitted, Respondents deny the allegations in Paragraph 37.

38. Respondents deny that CHP Officers Meza-Gonzales and Melano detained Petitioner "based solely on the lawful refusal of a voluntary test." Respondents admit that Officer Meza-Gonzalez informed Petitioner that he could submit to a chemical alcohol test (either breath or blood), or refuse such a test, but that refusing to be tested would result in administrative consequences regarding Petitioner's driving privileges from the California Department of Motor Vehicles. Respondents admit that shortly after Mr. Newanforbi refused to complete a chemical alcohol test, Officer Meza-Gonzales placed Petitioner under arrest for driving under the influence of alcohol. Except as specifically admitted, Respondents deny the allegations in Paragraph 38.

39. Respondents admit that Officer Meza-Gonzalez transported Petitioner in handcuffs to the CHP Dublin Area Office at 4999 Gleason Drive, Dublin, California. Respondents lack sufficient information and knowledge to admit or deny the remaining allegations in Paragraph 39, as the dialogue Petitioner refers to did not take place at the Dublin Area Office, and the speaker of that dialogue does not appear on the dashcam recording, and on that basis deny the remaining allegations in Paragraph 39.

40. Respondents admit that at or around 2:38 a.m. on November 1, 2024, phlebotomist Aziza Ghaleb performed a blood draw on Petitioner at the CHP Dublin Area Office. Respondents

deny that the affidavit supporting the warrant for Petitioner's blood draw was in any way false, misleading, or contradictory. Except as specifically admitted, Respondents deny all remaining factual allegations in Paragraph 40.

41. Respondents admit that following Petitioner's blood draw, he was transported to Santa Rita Jail in Alameda County, where he was detained beginning Friday, November 1, 2024 and released on Tuesday, November 5, 2024. Respondents deny that the arrest-investigation report prepared by Officer Meza-Gonzalez was fabricated. Respondents lack sufficient information to admit or deny the allegation that Petitioner was confined with detainees accused of violent offenses, including homicide, and on that basis, deny the allegation. Except as expressly so admitted, Respondents deny all remaining allegations in Paragraph 41.

42. Respondents admit that on November 5, 2024, CHP issued a "Dublin CHP – 01991 – Detention Certificate" to Petitioner, which quoted excerpts from California Penal Code sections 849, 849.5, and 851.6. Respondents admit that California law speaks for itself. Respondents further admit that no criminal charges have been filed against Petitioner for driving under the influence on November 1, 2024. Respondents lack sufficient information to admit or deny the allegation that no prosecutor has sought to file criminal charges against Petitioner for driving under the influence on November 1, 2024 and on that basis deny the allegation. Except as expressly so admitted, Respondents deny all remaining allegations in Paragraph 42.

43. Respondents contend that Paragraph 43 contains legal arguments and therefore does not require a response.

44. Respondents admit that Officer Meza-Gonzalez provided, in his sworn statement, that he "could smell the distinct odor of an alcoholic beverage emitting from the within the vehicle" and "from Newanforbi's breath and person." Respondents admit that neither CHP Officer stated aloud that they detected the odor of alcohol from Petitioner's vehicle or from Petitioner's person. Respondents admit that Officer Melano identified aloud that the odor of the liquid in the open cup found in Petitioner's vehicle resembled urine. Respondents contend that Paragraph 44 contains legal arguments that do not require a response. Respondents admit that federal law speaks for

itself. To the extent Paragraph 44 contains any remaining factual allegations, Respondents deny the allegations in Paragraph 44.

45. Respondents admit that Officer Meza-Gonzalez characterized Petitioner's speech as "[s]lurred" in CHP's arrest-investigation report. Respondents deny that the CHP officers' dashcam recording "captures Petitioner speaking coherently throughout the encounter." Respondents admit that Petitioner stated that he knew commercial driver fatigue protocols and that his Tesla vehicle did not have an alternator, but deny that Petitioner engaged in "extended fluent conversation about commercial-driver fatigue protocols" or "discuss[ed] alternator mechanics in technical detail." Respondents admit that neither officer told Petitioner that his speech was "slurred, hesitant, or impaired." Except as expressly so admitted, Respondents deny the remaining factual allegations in Paragraph 45.

46. Respondents admit that Officer Meza-Gonzales described Petitioner as "very confused and disoriented" in CHP's arrest-investigation report. Respondents admit that Petitioner correctly identified the city he was parked in as Livermore, read aloud highway signs, and provided that he had driven from Oakland and was driving toward Stockton. Respondents deny that Petitioner engaged in "a cogent professional explanation of commercial-driver fatigue protocols." Respondents contend that Paragraph 46 contains legal arguments that do not require a response. Except as specifically admitted, Respondents deny the allegations in Paragraph 46.

47. Respondents admit that, in CHP's arrest-investigation report, Officer Meza-Gonzalez checked the box indicating that an alcoholic beverage was present in Petitioner's vehicle. Respondents admit that the CHP officers who detained Petitioner identified that the liquid contained in the open cup in Petitioner's vehicle was urine. Respondents admit that the CHP officers located an empty can of Mike's Hard Lemonade and stated aloud that beverage constituted alcohol. Respondents admit that Petitioner denied having consumed it. Respondents contend that Paragraph 47 contains legal arguments that do not require a response. Except as specifically admitted, Respondents deny the allegations in Paragraph 47.

48. Respondents contend that Paragraph 48 contains legal arguments that do not require a response.

49. Respondents admit that in the early morning of November 1, 2024, CHP officers approached Petitioner's vehicle, which was unlawfully parked on the shoulder on I-580 East in Livermore, California, for a welfare check. Respondents admit that the CHP officers identified an open cup of liquid in the vehicle as a cup of urine. Respondents deny that the CHP officers falsely reported the odor of alcohol emanating from Petitioner and his vehicle, Petitioner's slurred speech, and Petitioner's confusion. Respondents admit that the CHP officers obtained a warrant for Petitioner's blood draw and that Petitioner's blood was drawn at the CHP Dublin Area Office at approximately 2:38 a.m. Respondents deny that Petitioner was transported to Santa Rita Jail under a parole hold, but admit that Petitioner was detained for driving under the influence of alcohol. Respondents admit that Petitioner was detained at Santa Rita Jail from November 1, 2024 through November 5, 2024. Respondents lack sufficient information to admit or deny the allegation that Petitioner was detained with other detainees accused of violent offenses, and on that basis, deny this allegation. Respondents admit that on November 5, 2024, CHP issued a "Dublin CHP – 01991 – Detention Certificate" to Petitioner, which quoted excerpts from California Penal Code sections 849, 849.5, and 851.6. Respondents admit that California law speaks for itself. Respondents further admit that no criminal charges have been filed against Petitioner for driving under the influence on November 1, 2024. Respondents deny that CHP's arrest-investigation report was false. Respondents admit that on January 24, 2025, the California Department of Motor Vehicles imposed an administrative per se suspension of Petitioner's Class A Commercial Driver's License. Respondents admit that between February 20, 2025 and February 19, 2026, Petitioner was barred from commercial driving for refusing a chemical blood test. Respondents admit that on March 23, 2026, the Commission on Peace Officer Standards and Training forwarded Petitioner's Complaint to CHP as Case No. PUBLIC-26-000371. Respondents admit that on March 26, 2026, Captain Serrato issued a letter to Petitioner acknowledging receipt of Petitioner's POST civilian complaint. Respondents admit that on April 9, 2026, Petitioner sent to Sergeant Dutra, copying Captain Serrato, a request for certification of his Form I-918, Supplement B, including along with a memorandum and transcript created by Petitioner, a copy of CHP's Arrest—Investigation Report, a copy of "Dublin CHP – 01991 –

Detention Certificate" issued to Petitioner pursuant to California Penal Code section 849, and additional exhibits. Respondents admit that on April 10, 2026, Lieutenant Paul acknowledged receipt of Petitioner's Form I-918, Supplement B certification request, informing Petitioner that his request was under review. Respondents admit that on April 20, 2026, Captain Serrato sent Petitioner a letter declining Petitioner's certification request. Except as expressly so admitted, Respondents deny the remaining allegations in Paragraph 49.

50. Respondents contend that Paragraph 50 contains legal arguments that do not require a response.

51. Respondents contend that Paragraph 51 contains legal arguments that do not require a response. Respondents further lack sufficient information to admit or deny Petitioner's allegations regarding his lost wages, loss of U-visa eligibility window, continued professional and reputational harm, and out-of-pocket and collateral economic costs, and on that basis, deny the allegations.

52. Respondents contend that Paragraph 52 contains legal arguments that do not require a response.

53. Respondents deny that Petitioner filed a "Citizen Complaint" with CHP that was designated at File No. 390.18437.17620, as File No. 390.18347.17620 refers to documents in connection with Petitioner's Form I-918, Supplement B certification request.

54. Respondents admit that Petitioner filed a complaint with the Commission on Peace Officer Standards and Training regarding his November 1, 2024 detention. Respondents admit that on March 23, 206, POST forwarded Petitioner's complaint to CHP under Case No. PUBLIC-26-000371.

55. Respondents lack sufficient information to admit or deny the allegations regarding Petitioner's participation in DMV proceedings and on that basis, deny these allegations.

56. Respondents lack sufficient information to admit or deny the allegations regarding Petitioner's transcription of the dashcam video recording of his November 1, 2024 detention and on that basis, deny these allegations. Respondents further contend that Paragraph 56 contains legal arguments that do not require a response.

57. Respondents deny that any "investigating entity" ever requested information from Petitioner, and on that basis deny the allegations in Paragraph 57.

58. Respondents admit that on April 9, 2026 Petitioner emailed Sergeant Dutra a request for certification of his Form I-918, Supplement B along with exhibits. Respondents admit that Petitioner's email, attached to the Petition as Exhibit 3, speaks for itself.

59. Respondents admit that on April 10, 2026, Lieutenant Paul acknowledged receipt of Petitioner's April 9, 2026 request by email, advising Petitioner that his request was "under review."

60. Respondents admit that on April 20, 2026, Captain Serrato issued to Petitioner a letter denying Petitioner's certification request. Respondents admit that the letter, attached to the Petition as Exhibit 1, speaks for itself.

61. Respondents admit that Captain Serrato's April 20, 2026 letter to Petitioner, attached to the Petition as Exhibit 1, speaks for itself.

62. Respondents contend that Paragraph 62, including its subparts, contains legal arguments that do not require a response.

63. Respondents contend that Paragraph 63 contains legal arguments that do not require a response.

64. Respondents contend that Paragraph 64 contains legal arguments that do not require a response.

65. Respondents contend that Paragraph 65 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

66. Respondents contend that Paragraph 66 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

67. Respondents contend that Paragraph 67 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

68. Respondents contend that Paragraph 68 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

69. Respondents contend that Paragraph 69 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

70. Respondents contend that Paragraph 70 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

71. Respondents admit that CHP's certification denial was issued before the 30-day statutory deadline. Respondents contend that Paragraph 71 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

72. Respondents contend that Paragraph 72 contains legal arguments that do not require a response.

73. Respondents contend that Paragraph 73 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

74. Respondents contend that Paragraph 74 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

75. Respondents contend that Paragraph 75 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

76. Respondents contend that Paragraph 76 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

77. Respondents contend that Paragraph 77 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

78. Respondents contend that Paragraph 78 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

79. Respondents contend that Paragraph 79 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 79 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

80. Respondents contend that Paragraph 80 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 80 belongs

to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

81. Respondents contend that Paragraph 81 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 81 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

82. Respondents contend that Paragraph 82 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 82 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

83. Respondents contend that Paragraph 83 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 83 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

84. Respondents contend that Paragraph 84 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 84 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

85. Respondents contend that Paragraph 85 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 85 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

86. Respondents contend that Paragraph 86 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 86 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

87. Respondents contend that Paragraph 87 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 87 belongs

to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

88. Respondents contend that Paragraph 88 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 88 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

89. Respondents contend that Paragraph 89 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 89 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

90. Respondents contend that Paragraph 90 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 90 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

91. Respondents contend that Paragraph 91 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 91 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

92. Respondents contend that Paragraph 92 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 92 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

93. Respondents contend that Paragraph 93, including its subparts, contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 93 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

94. Respondents contend that Paragraph 94, including its subparts, contains legal arguments that do not require a response. Respondents admit that California law speaks for itself.

Further, Paragraph 94 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

95. Respondents contend that Paragraph 95 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 95 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

96. Respondents contend that Paragraph 96 contains legal arguments that do not require a response. Respondents admit that CHP is a "certifying entity" pursuant to Penal Code section 679.10. Respondents admit that California law speaks for itself. Except as expressly so admitted, Respondents deny the allegations in Paragraph 96. Further, Paragraph 96 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

97. Respondents contend that Paragraph 97 contains legal arguments that do not require a response. Respondents admit that California law speaks for itself. Further, Paragraph 97 belongs to a section of the Petition that has been dismissed by the Court, without amendment by Petitioner, and so no response is required.

98. Responding to the Prayer for Relief, Respondents contend that the Prayer does not contain factual allegations and therefore does not require a response. To the extent the Prayer contains factual allegations, Respondents deny the allegations in the Prayer.

AFFIRMATIVE DEFENSES

FIRST

(Failure to State a Cause of Action)

The Petition for Writ of Mandate and each cause of action therein fail to state facts sufficient to constitute a cause of action.

SECOND

(No Abuse of Discretion)

Respondents deny that they have abused their discretion in denying Petitioner's request for a Form I-918, Supplement B certification.

THIRD

(Good Faith)

Respondents affirmatively state that any actions taken with respect to Petitioner have been in good faith, reasonable and prudent, and consistent with all applicable legal standards.

FOURTH

(Unclean Hands)

Petitioner's causes of action are barred by the equitable doctrine of unclean hands.

FIFTH

(Contrary to Law)

Petitioner's requested relief is barred as a matter of law because granting such relief would result in an unlawful order compelling Respondents to act contrary to their statutory duties.

Dated: October 12, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ Vanessa Ing
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
California Highway Patrol

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DECLARATION OF SERVICE BY E-MAIL and U.S. MAIL

Case Name: ***Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.***
No.: **26CV191136**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. My business address is: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. My electronic service address is Huihong.Su@doj.ca.gov. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On October 12, 2026, I served the attached:

RESPONDENTS' VERIFIED ANSWER TO VERIFIED PETITION FOR WRIT OF MANDATE

by transmitting a true copy via electronic mail. In addition, I placed a true copy thereof enclosed in a sealed envelope, in the internal mail system of the Office of the Attorney General, addressed as follows:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-Mail: bnn.cdl@gmail.com

Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on October 12, 2026, at San Francisco, California.

H. Su
Declarant


Signature

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, **v.** **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26CV191136 **RESPONDENT CALIFORNIA HIGHWAY PATROL'S OBJECTIONS AND RESPONSES TO PETITIONER'S FIRST SET OF REQUESTS FOR PRODUCTION** Dept: 25 Judge: The Honorable Jenna M. Whitman Action Filed: May 29, 2026

DEMANDING PARTY: Petitioner Brendan Nghesi Newanforbi

RESPONDING PARTY: Respondent California Highway Patrol

Set No.: One

Pursuant to Code of Civil Procedure sections 2031.010 and 2031.220 the Federal Rules of Civil Procedure, Respondent California Highway Patrol ("Respondent" or "CHP") hereby provides the following objections and responses to Plaintiffs' First Set of Request for Production of Documents.

PRELIMINARY STATEMENT

Respondent has not yet completed the investigation of the facts and discovery relating to this case. These responses are made by Respondent after a reasonable and diligent search, and are given without prejudice to Respondent's right to amend, revise, supplement, correct, or otherwise change any response, or produce additional documents. It is possible that further factual investigation, legal research, factual and legal analysis, and/or discovery could lead to additions, changes, and/or variations with respect to these objections and responses.

Respondent expressly reserves the right to assert any and all objections as to the admissibility of its responses and any documents or things produced in response to those Requests into evidence in this action, or in any other proceedings, on any and all grounds including, but not limited to, competency, relevancy, materiality, and privilege. Further, Respondent makes the following objections and responses without agreeing or implying that any of the requests are relevant to the subject matter of this case.

An objection or response to a request for production of documents shall not be construed as an acknowledgement that Respondent performed any of the acts described in the Request or definitions applicable to the Request, or that Respondent acquiesces in the characterization of the conduct or activities contained in the Request or definitions applicable to the Request.

The following responses are given without prejudice to the right to produce evidence or witnesses that Respondent may later discover. Respondent reserves the right to supplement, clarify, revise, or correct any or all of the responses and objections herein, and to assert additional objections or privileges, in one or more subsequent supplemental response(s).

Respondent reserves the right to supplement, clarify, revise, and/or correct any or all of the following objections and responses. Further, Respondent makes the following objections and

responses without agreeing or implying that any of the Requests are relevant to the subject matter of this case.

Respondent anticipates producing documents, consistent with the general and specific objections articulated below, on a rolling basis, with at least one production made by October 23, 2026.

GENERAL OBJECTIONS

1. Respondent objects to each instruction, definition, and Request for Production ("Requests") to the extent that it purports to impose any requirement or obligation that differs from or exceeds the scope of Respondent's obligations under the Code of Civil Procedure, the California Rules of Court, the Local Rules of the California Superior Court for the County of Alameda, or applicable court orders.

2. Respondent objects to the Requests to the extent that any particular Request is overbroad, unduly burdensome, vague, ambiguous, unintelligible, or not relevant to any party's claim or defense and proportional to the needs of the case considering the importance of the issues at stake in the action, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit.

3. Respondent objects to the definition of the term "YOU," "YOUR," and "RESPONDENT" to include "the Dublin Area office, Headquarters, and all officers, employees, agents and representatives, including without limitation Officer Santiago Meza-Gonzalez (Badge 023295) [sic], Officer Jose Melano (Badge 023054), Captain G. Serrato, Lieutenant Gary Paul, Sergeant Eric Dutra, and phlebotomist Aziza Ghaleb, and anyone else acting on YOUR behalf," as overbroad and inclusive of individuals who are either not under the control of Respondent California Highway Patrol, not party to this action, or not witnesses to this action.

4. Respondent objects to the definition of the "DENIAL" to include "every draft, routing, and enclosure" on the basis that this definition includes material that is protected by the governmental deliberative process privilege.

5. Respondent objects to each Request that seeks information or material that is protected from discovery by the law enforcement investigatory privilege, the governmental deliberative process privilege, the official information privilege, the attorney-client privilege, the attorney work-product doctrine, and/or any other applicable privilege or protection. By responding to these Requests, Respondent does not intend to waive any applicable privilege or protection.

6. Respondent objects to the Requests to the extent that they seek documents containing information in which a third-party has a constitutional or statutory right of privacy.

7. Respondent objects to the Requests to the extent that any Request assumes the truth of facts either in dispute or not yet in evidence.

8. Respondent objects to each Request to the extent that it seeks information or material not relevant to any claim or defense at issue in this case and not reasonably calculated to lead to the discovery of admissible evidence.

9. Respondent objects to each Request, including all definitions and instructions therein, that does not describe with reasonable particularity the information or material sought and/or to the extent that it is overbroad, unduly burdensome, vague, ambiguous, and/or irrelevant.

10. Respondent objects to each Request to the extent that it is duplicative, overlapping, and/or cumulative.

11. Respondent objects to each Request to the extent that it requires Respondent to draw a legal conclusion.

12. To the extent that any general instruction or individual request purports to impose on Respondent the burden of providing information that is not in its possession, custody, or control, or is already in Petitioner's possession, custody, or control, or is not reasonably available to Respondent after a diligent search and reasonable inquiry, Respondent objects on the grounds that the Requests are overbroad, unduly burdensome, oppressive, and the burden, expense, and/or intrusiveness of the discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Respondent further objects to each Request as

unduly burdensome to the extent that it seeks to impose an obligation to ascertain information or material not within Respondent's knowledge.

13. Nothing in Respondent's responses constitutes a statement that any responsive information or material does in fact exist, or that Respondent agrees with Plaintiffs' characterizations or definitions contained therein, or that the information or material sought is relevant or likely to lead to the discovery of admissible evidence.

14. Respondent expressly reserves all objections to any attempt to introduce as evidence in any proceeding any of the following responses to the Requests. Defendant's responses to these Requests are subject to all objections ordinarily available if such statements were offered into evidence in a judicial proceeding. All such objections (including, but not limited to, all objections concerning competency, relevancy, materiality, propriety, authenticity, and admissibility) are hereby expressly reserved and may be interposed at the time of trial or at any other time. By responding to the Requests, Respondent does not concede the relevancy, materiality, or admissibility of any information or material, and no response shall be construed as, a waiver by Respondent of all or any part of any objection to any Request or an admission of the existence of any facts set forth in or assumed by any Request.

15. Respondent objects to each Request to the extent that it is intended to limit Respondent's rights to rely on any documents, information, or witness for any purpose that may result from the Request.

16. Respondent has not completed discovery, analysis, or preparation for trial in this case. Each response is true and correct to the best of the knowledge of Respondent as of this date, and Respondent reserves the right to provide information or material that is subsequently discovered or not previously provided as the result of oversight, inadvertence, or mistake. Respondent also reserves the right to supplement the following responses to the extent necessary and appropriate. Furthermore, these responses are prepared based on Respondent's good-faith interpretation and understanding of each Request, and are subject to correction for inadvertent errors, mistake, oversight, misinterpretation, or otherwise, and if any.

17. Respondent will make reasonable efforts to respond to each Request as Respondent understands and interprets the Request. If Petitioner's interpretation of any individual Request differs from that of Respondent, Respondent reserves the right to supplement its objections and responses.

SPECIFIC OBJECTIONS AND RESPONSES

Respondent incorporates by reference the General Objections set forth herein into the specific responses and objections set forth below. Respondent may repeat a General Objection for emphasis or some other reason. The failure to repeat any General Objection does not waive any General Objection to each request. Moreover, Respondent does not waive the right to amend the objections or responses as appropriate.

REQUEST NO. 1:

The complete search-warrant package for WAR913372, including: (a) the application; (b) the affidavit and any supplemental affidavit or statement; (c) all attachments, exhibits, and incorporated writings; (d) every electronic-warrant submission, transmittal, confirmation, or system record (including any Alameda County e-warrant or WAR-system entry); (e) the warrant signed by Judge A. Sekany on or about November 1, 2024, at approximately 2:34 a.m.; (f) the return; (g) the inventory; and (h) any sealing, unsealing, or access order concerning the warrant or affidavit.

RESPONSE TO REQUEST NO. 1:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that this Request is vague and ambiguous because it fails the scope of "all attachments, exhibits, and incorporated writings." Respondent further objects that this Request is overly broad and unduly burdensome in seeking "every electronic-warrant submission, transmittal, confirmation, or system record (including any Alameda County e-warrant or WAR-system entry)." Defendant further objects to this Request to the extent that it seeks material that is protected by the attorney-client privilege, attorney work-production protection, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to

unauthorized persons.

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce the search warrant application for Petitioner's blood draw for driving under the influence, the sworn affidavit supporting the search warrant application, the arrest-investigation report for Petitioner's November 1, 2024 detention, the warrant signed by Judge Amy Sekany at 2:34 a.m., and the laboratory toxicology results of Petitioner's blood draw for driving under the influence.

REQUEST NO. 2:

Every DOCUMENT reflecting the factual showing made to Judge A. Sekany to obtain the WARRANT, including any draft affidavit, officer declaration, CHP Form 202, DS-367, CAD printout, photograph, dashcam still, or other writing presented, transmitted, read, or summarized to the magistrate, and any note of what was said to the magistrate that is not already contained in the package produced in response to Request No. 1.

RESPONSE TO REQUEST NO. 2:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that this Request is duplicative of Request No. 1. Respondent further objects to this Request to the extent that it seeks material that is protected by the attorney-client privilege, attorney work-production protection, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons.

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce all non-privileged records shown to Judge Amy Sekany to obtain the search warrant signed by Judge Sekany around 2:34 a.m. on November 1, 2024, for Petitioner's blood draw.

REQUEST NO. 3:

Every chain-of-custody DOCUMENT for the blood vials drawn from PETITIONER on November 1, 2024, in connection with the INCIDENT and the WARRANT, including collection forms, kit identifiers, vial labels, seals, storage logs, and the identity of the person who drew the

blood (including Aziza Ghaleb, if that person drew the blood) and of every person who thereafter took custody of either vial.

RESPONSE TO REQUEST NO. 3:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that this Request is vague and ambiguous because it fails to define the term "chain-of-custody DOCUMENT." Respondent further objects that to the extent this Request seeks "collection forms, kit identifiers, vial labels, seals, storage logs, and the identity of the person who drew the blood . . . and of every person who thereafter took custody of either vial," this Request is overbroad, unduly burdensome, and not relevant to the claims or defenses in this action, as the Petition contains no allegation that any CHP officer, employee, or contractor tampered with or somehow interfered with Petitioner's blood draw for driving under the influence. Respondent further objects to this Request to the extent that it seeks attorney work product or information that is protected by the attorney-client privilege, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons.

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce the laboratory toxicology results of Petitioner's November 1, 2024 blood draw for driving under the influence, prepared by phlebotomist Aziza Ghaleb.

REQUEST NO. 4:

Every DOCUMENT reflecting the submission or transmittal of PETITIONER's blood samples from the INCIDENT to the California Department of Justice, Bureau of Forensic Services, or any other laboratory, including the sample identifier, laboratory request, shipping or courier record, and any acknowledgment of receipt.

RESPONSE TO REQUEST NO. 4:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that this Request is vague and ambiguous to because it fails to define the

terms "sample identifier" or "laboratory request." Respondent further objects that to the extent this Request seeks "[e]very DOCUMENT reflecting the submission or transmittal of PETITIONER's blood samples from the INCIDENT to the California Department of Justice, Bureau of Forensic Services, or any other laboratory, including the sample identifier, laboratory request, shipping or courier record, and any acknowledgment of receipt" this Request is overbroad, unduly burdensome, and not relevant to the claims or defenses in this action, as the Petition contains no allegation that any CHP officer, employee, or contractor tampered with or somehow interfered with Petitioner's blood draw for driving under the influence. Respondent further objects to this Request to the extent that it seeks attorney work product or information that is protected by the attorney-client privilege, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons.

REQUEST NO. 5:

The complete toxicology, blood-alcohol, and forensic laboratory file for PETITIONER's November 1, 2024 blood samples, including every preliminary, amended, supplemental, and final report, printout, chromatogram, analyst notes, and result of 0.00 or any other value, whether or not a numerical BAC is reported.

RESPONSE TO REQUEST NO. 5:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that to the extent this Request seeks "every preliminary, amended, supplemental, and final report, printout, chromatogram, analyst notes, and result of 0.00 or any other value, whether or not a numerical BAC is reported," this Request is overbroad, unduly burdensome, and not relevant to the claims or defenses in this action, as the Petition contains no allegation that the toxicology results for Petitioner's blood draw for driving under the influence were somehow incorrect or falsified, and the method by which the toxicology results were derived is not at issue in this case. Respondent further objects to this Request to the extent that it seeks attorney work product or information that is protected by the attorney-client privilege, deliberate process privilege, official information privilege, and/or any other applicable privilege

or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons.

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce the final and complete laboratory toxicology results of Petitioner's November 1, 2024 blood draw for driving under the influence, prepared by phlebotomist Aziza Ghaleb.

REQUEST NO. 6:

Every DOCUMENT showing the date YOU received any laboratory result described in Request No. 5, and the identity of each person who received, reviewed, routed, or was informed of that result, including any DOCUMENT showing whether the result was in YOUR POSSESSION, CUSTODY, OR CONTROL on or before April 20, 2026.

RESPONSE TO REQUEST NO. 6:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that to the extent this Request seeks "the identify of each person who received, reviewed, routed, or was informed of [any laboratory result described in Request No. 5], including any DOCUMENT showing whether the result was in YOUR POSSESSION, CUSTODY, OR CONTROL on or before April 20, 2026," this Request is overbroad, unduly burdensome, and not relevant to the claims or defenses in this action, as the Petition contains no allegation that the toxicology results for Petitioner's blood draw for driving under the influence were somehow incorrect, falsified, or otherwise tampered with. Respondent further objects to this Request to the extent that it seeks attorney work product or information that is protected by the attorney-client privilege, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons.

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce the final and complete laboratory toxicology results of Petitioner's November 1, 2024 blood draw for driving under the influence, prepared by phlebotomist Aziza Ghaleb.

REQUEST NO. 7:

Non-privileged operational COMMUNICATIONS from November 1, 2024 through April 20, 2026 concerning: (a) the WARRANT; (b) the blood draw from PETITIONER and laboratory testing of that blood; (c) the transmittal, receipt, routing, or review of any laboratory result; (d) whether to refer criminal charges arising from the INCIDENT; or (e) the CERTIFICATION REQUEST or DENIAL. This request includes responsive communications with the Alameda County District Attorney's Office, the Department of Justice or laboratory, and CHP personnel. It excludes attorney-client communications, attorney work product, communications created solely for this litigation, and communications about unrelated investigations.

RESPONSE TO REQUEST NO. 7:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects to this Request because it seeks attorney work product or information that is protected by the attorney-client privilege, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons. Respondent further objects to this Request to the extent it seeks communications not within the custody, control, or possession of Respondent.

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce non-privileged communications responsive to this Request in its possession, custody, or control, to the extent such documents exist. Discovery is ongoing and Respondent reserves the right to supplement this response.

REQUEST NO. 8:

The non-Pitchess certification-decision file that Captain G. Serrato or YOU considered, reviewed, or actually had available when evaluating the CERTIFICATION REQUEST and issuing the DENIAL, including: (a) the April 9, 2026 request and attachments; (b) the April 10, 2026 communication from Lieutenant Gary Paul; (c) the April 20, 2026 DENIAL and drafts; (d) CHP Form 202, DS-367, the November 5, 2024 Detention Certificate, and dashcam or transcript, to the extent reviewed or actually available and not already produced in complete form; and (e)

any non-privileged note, routing slip, checklist, or legal guidance used in the certification evaluation. This Request expressly excludes peace-officer personnel records, citizen-complaint investigation files, and other records subject to Evidence Code sections 1043 through 1045.

RESPONSE TO REQUEST NO. 8:

Respondent incorporates by reference each General Objection as if stated herein. Respondent objects that this Request is unduly burdensome to the extent the documents requested are already in the possession of Petitioner. Respondent objects to this Request it assumes facts not in evidence. Respondent further objects to this Request to the extent that it seeks attorney work product or information that is protected by the attorney-client privilege, deliberate process privilege, official information privilege, and/or any other applicable privilege or protection, including laws prohibiting disclosure of state summary criminal history information to unauthorized persons. Respondent further objects to this Request to the extent it seeks information that is protected by privacy rights and is confidential. *See* Cal. Penal Code § 832.7 ("the personnel records of peace officers" and "records maintained by a state or local agency pursuant to Section 832.5 [of the Penal Code], or information obtained from these records, are confidential and shall not disclosed in any criminal or civil proceeding except by discovery pursuant to Section 1043 and 1046 of Evidence Code"); *see also* Cal. Evid. Code § 1043 ("[i]n any case in which discovery or disclosure is sought of peace or custodial officer personnel records or records maintained pursuant to Section 832.5 of the Penal Code or information from those records, the party seeking the discovery or disclosure shall file a written motion with the appropriate court . . . .").

Subject to and without waiving the foregoing objections and the General Objections, Respondent responds as follows: Respondent will produce non-privileged documents responsive to this Request in its possession, custody, or control, to the extent such documents exist. Discovery is ongoing and Respondent reserves the right to supplement this response.

Dated: October 20, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ Vanessa Ing
VANESSA K. ING
Deputy Attorney General
Attorneys for Respondent
California Highway Patrol

SA2026303341

VERIFICATION

I, Monica Ochoa, am employed as a Senior Legal Analyst for the California Highway Patrol (CHP). As such, I am authorized to execute this verification on behalf of Defendant State of California, by and through the California Highway Patrol.

I know the contents of the foregoing **RESPONDENT CALIFORNIA HIGHWAY PATROL'S OBJECTIONS AND RESPONSES TO PETITIONER'S FIRST SET OF REQUESTS FOR PRODUCTION** in the case *Brendan Ngehsi Newanforbi v. California Highway Patrol, et al.*, Case No. 26CV191136 in the Superior Court of the State of California, County of Alameda.

The responses were based on information from various sources and are within the knowledge of the State of California (by and through the California Highway Patrol). Unless specifically indicated in a particular response, I have no personal knowledge of the responses, but on information and belief I believe them to be true.

I am informed and believe that the matters stated herein are true and on that ground certify or declare under penalty of perjury under the laws of the State of California they are true and correct.

Executed on October 20, 2026, at Sacramento, California.

Monica Ochoa, Senior Legal Analyst

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Production of Documents, Set One - Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al. - 26CV191136

Huihong Su <Huihong.Su@doj.ca.gov> Fri, Oct 23 at 10:45 AM
To: <bnn.cdl@gmail.com>
Cc: <Vanessa.Ing@doj.ca.gov>

Good morning,

Please see attached documents in the above referenced case. Thank you.

Please download the attachments via the "Download Files" link at the bottom of this email. Please note that this link will expire.

Sincerely,

Huihong Su

Legal Secretary

California Department of Justice

Office of the Attorney General

455 Golden Gate Ave, Suite 11000

San Francisco, CA 94102

The following files have been sent using FileXchange and can be downloaded by using the link below:

Filename	Size	Checksum (SHA256)

7659@20241101005536-0.mp4	2.47 GB	ae5da7e970720d26d076ad36fb3254 3429ef60b3a79fc1c274b647b06fd1d6b4
7659@20241101013330-1.mp4	54.3 MB	30aac4eae73188ba82b2e7916f7009 7f59f2f493a1e0b3d6f46ebcb93e1352e9
7659@20241101024702-0.mp4	146 MB	921025565fd7baaff762ab51a83285 48ddbb2290b28cd6c1e358de6cad4720c0
7659@20241101024704-1.mp4	8.04 MB	359fc627805a4bdcf72cf119455487 42c8b29e446eedafa35346cf07dd3f75fb
Dashcam Videos Coversheet.pdf	113 KB	c8472a9d6c15f76a99e9e67097d1e3 5ffbfd7ab0a7d0d72df1051820337c4dc0
Exhibit 3, Incident Log 241101GG0064.pdf	974 KB	201cacaed9a228daa17b579e1a46b7 2b66706304f93c0b6de0dd868809140aa8
Exhibit 4, Beat sheet 10-31-2024.pdf	1.56 MB	e1814786b9a8210608f574b17249bd fa83f6efd5d6d83c6d05151603a9423ded
Exhibit 5, CHP 202, DS 367, Warrant Affidavit.pdf	12.6 MB	320533ac9d50323cf49abd59506b0a 8bd0db3e42fc9f895ac8c7d055259aa012
Exhibit 8, CHP 415, Meza-Gonzales 10-31-2024.pdf	711 KB	36781c9e379c04e9e602162505f7c4 ed7e80e6219040e44fa6be8f2d0cd1d166
Exhibit 11, CHP 415, Melano 10-31-2024.pdf	717 KB	f6c013637f82aa9143c7271653111c 1ae0a8253eeda4fcc3c5316f7ee3d0b664
Privilege Log.PDF	93.6 KB	cabad17f0d00dcd92c9ebcdabb1955 b2442b9c96e53c2e755d2cebbe30991063
Proof of Service.PDF	98.3 KB	c15d4fa96e4a398ed1562261e2b008 0efe58c04165719a7b8276349bf2e89ef8

Please click on the following link to download the attachments:
https://FX.doj.ca.gov/message/orIYCpEqOzjhLGnMTCN4Dd

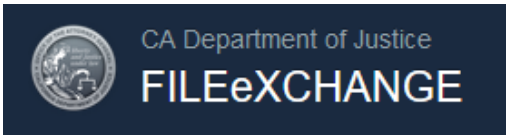
This email or download link can be forwarded to anyone.

The attachments are available until: **Friday, 30 October.**

Message ID: `orIYCpEqOzjhLGnMTCN4Dd`

Download Files

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RESPONDENT'S PRODUCTION OF DASHCAM VIDEO RECORDINGS

In Response to Petitioner's Requests for Production of Documents

Case Name: *Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.*

Case Number: 26CV191136

Producing Party: Respondent

Receiving Party: Petitioner

The following dashcam video recordings are produced in connection with Respondent's Responses to Petitioner's Requests for Production of Documents, Set One.

No.	Video File Name	Notes
1	7659@20241101005536-0.mp4	Dashcam recording of Petitioner's November 1, 2024 detention.
2	7659@20241101013330-1.mp4	Video has "no signal" due to hardware issue at time of recording; camera faces the back seat.
3	7659@20241101024702-0.mp4	Dashcam recording of Petitioner's November 1, 2024 detention.
4	7659@20241101024704-1.mp4	Video has "no signal" due to hardware issue at time of recording; camera faces the back seat.

Method of Production: Secure download link

Total Video Files: 4

Incident Detail Report

Data Source: **Data Warehouse**
Incident Status: **Closed**
Incident number: **241101GG0064**
Case Numbers:
Incident Date: **11/1/2024 01:04:13**
Report Generated: **5/10/2026 12:17:38**

Incident Information

Incident Type:	CHP No Response	**Alarm Level:**	
Priority:	5	**Problem:**	1015-Prisoner In Custody
Determinant:		**Agency:**	CHP
Base Response#:		**Jurisdiction:**	GG
Confirmation#:		**Division:**	118-Dublin
Taken By:	Lynn N Keith	**Battalion:**	
Response Area:		**Response Plan:**	
Disposition:	F-File	**Command Ch:**	
Cancel Reason:	RD-Radio Desk	**Primary TAC:**	
Incident Status:	Closed	**Secondary TAC:**	
Certification:		**Delay Reason (if any):**	
Longitude:	121808836	**Latitude:**	37700761

Incident Location

Location Name:	EB 580 JWO ISABEL	**County:**	Alameda
Address:	I580 E / ISABEL AVE W OFR	**Location Type:**	
Apartment:		**Cross Street:**	
Building:		**Map Reference:**	
City, State, Zip:	Livermore CA 94551		

Supplemental Information - Vehicle

VEHICLE 1
License: 9EAX768 - CA - Passenger Car

Call Receipt

Caller Name:			
Method Received:		**Call Back Phone:**	
Caller Type:		**Caller Location:**	
Caller Address:		**Caller Location Phone:**	
Caller Building:		**Caller Apartment:**	
Caller City, State, Zip:		**Caller County:**	

Time Stamps

Description	Date	Time	User
Phone Pickup	11/1/2024	01:04:13	
1st Key Stroke	11/1/2024	01:04:13	
In Waiting Queue	11/1/2024	01:04:13	
Call Taking Complete	11/1/2024	01:04:13	Lynn N Keith
1st Unit Assigned	11/1/2024	01:04:13	
1st Unit Enroute	11/1/2024	01:04:13	
1st Unit Arrived	11/1/2024	01:04:13	
Closed	11/1/2024	03:27:52	Lynn N Keith

Elapsed Times

Description	Time
Received to In Queue	00:00:00
Call Taking	00:00:00
In Queue to 1st Assign	00:00:00
Call Received to 1st Assign	00:00:00
Assigned to 1st Enroute	00:00:00
Enroute to 1st Arrived	00:00:00
Incident Duration	02:23:39

Resources Assigned

Unit	Primary Flag	Assigned	Disposition	Enroute	Staged	Arrived	At Patient	Delay Avail	Complete	Odm. Enroute	Odm. Arrived	Cancel Reason
C118-068	N	01:04:13	RU-Reassign Unit or Incident	01:04:13		01:04:13			03:25:57			RU-Reassign Unit

Personnel Assigned

Unit	Name
C118-068	Jose C Melano (023054); Santiago A Meza Gonzales (023295)

Caution Notes

No Caution Notes found

Permits

No Permit Information

Pre-Scheduled Information

No Pre-Scheduled Information

Transports

No Transports Information

Transport Legs

No Transports Information

Comments

Date	Time	User	Type	Conf.	Comments
11/1/2024	01:04:16	A13903	Response	Y	[1] [Query] C118-068, CLETS/NCIC Vehicle Inquiry: C,CA,9EAX768,PC,4,T
11/1/2024	01:04:30	A13903	Response	Y	[2] [Query] C118-068, 1. 1127: C,CA,L1,F7953179
11/1/2024	01:04:35	A13903	Response		[3] C118-068 REQ 29 SUB
11/1/2024	01:06:42	A13903	Response	Y	[4] [Query] C118-068, SRF Person Inq by Number: C,F7953179
11/1/2024	01:07:01	A13903	Response	Y	[5] [Query] C118-068, Wanted Person Inquiry by Name: C,NGWANFORBI BRENDAN N,091696,M
11/1/2024	01:07:08	A13903	Response	Y	[6] [Query] C118-068, Gun Inquiry by Name: C,NGWANFORBI BRENDAN N,091696
11/1/2024	01:07:29	A13903	Response		[7] PER NCIC, SUBJ ON CDC PAROLE FOR 289 A1 PC
11/1/2024	01:08:22	A13903	Response		[8] PER NCIC, SUBJ IS A 290 REGISTRANT
11/1/2024	01:10:11	A13903	Response		[9] LL W/ SAN JOAQUIN CO
11/1/2024	01:11:29	A13903	Response		[10] SUBJ CLR SAN JOAQUIN
11/1/2024	01:12:33	A13903	Response		[11] 118-68 OFCR MEZA 23295 1015 AT 0112*****
11/1/2024	01:12:39	A13903	Response		[12] 118-68 REQ 1185 FOR TESLA
11/1/2024	01:12:42	A13903	Response		[13] [Notification] [CHP]-Problem changed from STOP to 1015-Prisoner In Custody by CHP
11/1/2024	01:14:14	A12772	Response		[14] [Rotation Request Comment] 1039 UNITED TOWING LVMR 925-777-7778
11/1/2024	01:14:19	A13903	Response		[15] SUBJ CLR AWS
11/1/2024	01:53:17	023295	Response	Y	[16] 180 INFO: 2023 TESLA MODEL Y, SUV, GRY IN COLOR, 9EAX768, TWO PLATES, TAKEN FOR 22651(h)(1) VC BY OFFICER MELANO 23054
11/1/2024	01:53:39	A13903	Response		[17] C118-068 BM 14799 TO OFC
11/1/2024	01:53:48	A13903	Response		[18] C118-068 PTY IS A REFUSAL
11/1/2024	01:53:52	A13903	Response		[19] Secondary Location for C118-068: OFC,
11/1/2024	01:54:00	A13903	Response		[20] 118-S7 CPYS

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11/1/2024	01:59:41	A13903	Response		[21] C118-068 EM 805 @ OFC
11/1/2024	01:59:46	A13903	Response		[22] C118-068 REQ BT TO DUB OFC
11/1/2024	02:00:57	A13903	Response		[23] 1039 BT VIA BLOODBOT
11/1/2024	02:07:43	A08297	Response	Y	[24] [Notification] [CHP]-BT ETA TO DUBLIN OFC 15 MINS // 510.472.4538
11/1/2024	02:11:59	A13903	Response	Y	[25] [Query] 118-CLETS, 1. Vehicle - Stored: C,9EAX768,CA,25,PC,7SAYGDEE3PF638736,23,TESL,TY,LL,GRY,110124,V0147839 024,UNITED TOW 925-777-7778/22651H/GG0064/A13903
11/1/2024	02:12:18	A13903	Response		[26] FCN/1202430600385 / V-Number: 01478-390-24 / 9EAZ768
11/1/2024	02:47:26	A13903	Response		[27] C118-068 BM 805 TO RITA
11/1/2024	02:47:30	A13903	Response		[28] Secondary Location for C118-068: RITA,
11/1/2024	02:50:12	A13903	Response		[29] C118-068 EM 806 @ RITA
11/1/2024	03:25:50	023295	Response	Y	[30] PARTY BOOKED FOR 23152(a) VC
11/1/2024	03:26:17	A13903	Response		[31] BOLO Entry: IC - In Custody Added By A13903 for Incident# 23324262
11/1/2024	04:23:38	A13903	Response		[32] LOCATED/CONTACTED FCN/H092033700531NAM/NEWANFORBI,BRENDAN NGEHSI********** END OF SRF CONTACT MESSAGE **********
11/1/2024	04:23:45	A13903	Response		[33] CONTACT MSG SENT FOR PAROLE

Address Changes

Date	Time	Location/Address	User
11/1/2024	01:06:16	EB 580 JWO ISABEL / Eb Jwo Isa	LNK

Priority Changes

No Priority Changes

Alarm Level Changes

No Alarm Level Changes

Activity Log

Date	Time	Radio	Activity	Location	Log Entry	User
11/1/2024	01:04:13	C118-068	10-97	Eb Jwo Isa		A13903
11/1/2024	01:04:13		Supplemental Information	Eb Jwo Isa	Supplemental Vehicle record 3509537 was added for license plate 9EAX768	A13903
11/1/2024	01:04:13		License Plate	Eb Jwo Isa	Plate Number 9EAX768 has been added.	A13903
11/1/2024	01:04:16	C118-068	[Query]		[Query] CLETS/NCIC Vehicle Inquiry: C,CA,9EAX768,PC,4,T	A13903
11/1/2024	01:04:16		Read Comment	Eb Jwo Isa	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:04:30	C118-068	[Query]		[Query] 1. 1127: C,CA,L1,F7953179	A13903
11/1/2024	01:06:04		Read Incident		Incident 262 was Marked as Read.	A13903
11/1/2024	01:06:04		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:06:11	C118-068	Update Unit Address	Eb Jwo Isa		A13903
11/1/2024	01:06:17	C118-068	Update Unit Address	I580 E / ISABEL AVE W OFR		A13903
11/1/2024	01:06:42	C118-068	[Query]		[Query] SRF Person Inq by Number: C,F7953179	A13903
11/1/2024	01:06:42		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:07:01	C118-068	[Query]		[Query] Wanted Person Inquiry by Name: C,NGWANFORBI BRENDAN N,091696,M	A13903
11/1/2024	01:07:08	C118-068	[Query]		[Query] Gun Inquiry by Name: C,NGWANFORBI BRENDAN N,091696	A13903
11/1/2024	01:12:42		Problem Nature	I580 E / ISABEL AVE W OFR	Incident problem nature changed from STOP to 1015-Prisoner In Custody	A13903
11/1/2024	01:12:51	C118-068	Task Request Sent	I580 E	Task request: REQ 1185 THX. The request was sent to advisor role(s): SCGG.	A13903
11/1/2024	01:12:53		UserAction		User clicked Exit/Save	A13903
11/1/2024	01:13:20	C118-068	Task Request Accepted	I580 E	Request: REQ 1185 THX. The request was accepted by Fara Farrales (A12772)	A12772
11/1/2024	01:13:22	C118-068	Rotation Request Entered	I580 E / ISABEL AVE W OFR Livermore, CA 94551	Rotation Request 11012024-0001106 entered.	A12772
11/1/2024	01:13:55	C118-068	Task Request Declined	I580 E	Request: TASK REQUEST: 262, C118-068 TEXT: REQ 1185 THX. The request was declined by Matthew P Venoya (A19710)	A19710
11/1/2024	01:14:14		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:14:14		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A12772
11/1/2024	01:14:15		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:14:15	C118-068	Rotation Provider Assigned	I580 E / ISABEL AVE W OFR Livermore, CA 94551	[RR 945675] Rotation Provider United Towing LVMR assigned to request.	A12772
11/1/2024	01:14:19		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:14:32		UserAction		User clicked Exit/Save	A13903
11/1/2024	01:15:34		UserAction		User clicked Exit/Save	A12772
11/1/2024	01:21:07		UserAction		User clicked Exit/Save	CT_NMARKOS
11/1/2024	01:53:52	C118-068	ENRT ALT	OFC	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	01:53:56		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:54:00		UserAction		User clicked Exit/Save	A13903
11/1/2024	01:54:00		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:59:28	C118-068	10-97 ALT	OFC	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	01:59:56		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	02:00:57		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	02:01:03		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:07:01		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	02:07:43		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A08297
11/1/2024	02:07:45		UserAction		User clicked Exit/Save	A08297
11/1/2024	02:11:59	118-CLETS	[Query]		[Query] 1. Vehicle - Stored: C,9EAX768,CA,25,PC,7SAYGDEE3PF638736,23,TESL,TY,LL,GRY,110 TOW 925-777-7778/22651H/GG0064/A13903	A13903
11/1/2024	02:12:20		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:26:35		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	02:26:39		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:39:22		UserAction		User clicked Exit/Save	CT_WAU
11/1/2024	02:44:09		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:47:26		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	02:47:30	C118-068	ENRT ALT	RITA	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	02:47:31		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:50:01	C118-068	10-97 ALT	RITA	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	03:25:57	C118-068	Disposition	EB 580 JWO ISABEL	RU-Reassign Unit or Incident	C118-068
11/1/2024	03:25:57	C118-068	10-8	I580 E / ISABEL AVE W OFR [EB 580 JWO ISABEL]	Unit Cleared From Incident 241101GG0064	C118-068
11/1/2024	03:25:58	C118-068	Available		Request to Cancel By mobile unit (C118-068)	C118-068
11/1/2024	03:25:58	C118-068	Reassign Vehicle		ReAssign Reason: RU-Reassign Unit	C118-068
11/1/2024	03:25:58	C118-068	Reassign Response		ReAssign Reason: RU-Reassign Unit	C118-068
11/1/2024	03:25:58	C118-068	Reassign Response		Clearing Primary Vehicle Flag	C118-068
11/1/2024	03:26:05		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	03:27:47		Create BOLO Record	I580 E / ISABEL AVE W OFR	BOLO Entry: IC - In Custody Added By A13903 for Incident# 23324262	A13903
11/1/2024	03:27:47		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	03:27:50		UserAction		User clicked Cancel	A13903
11/1/2024	03:27:52		Cancel Response	EB 580 JWO ISABEL	Cancellation Reason: RD-Radio Desk, Response Disposition: F-File	A13903

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11/1/2024	04:21:56	Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	04:23:38	Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	04:24:07	UserAction		User clicked Exit/Save	A13903

Edit Log

Date	Time	Field	Changed From	Changed To	Reason	Table	Workstation	User
11/1/2024	01:04:16	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:04	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:04	Read Call	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:11	Location_Name		EB 580 JWO ISABEL	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:13	Address	Eb Jwo Isa	I580 E/ Isa	Address Change	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Address	I580 E/ Isa	I580 E / ISABEL AVE W OFR	Change Verified	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	County		Alameda	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	IntersectionStreetID	NULL	954116	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Street_Id	NULL	954115	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Longitude	0	121808836	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Latitude	0	37700761	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Postal_Code		94551	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	State		CA	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	City		Livermore	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Address	Eb Jwo Isa	I580 E / ISABEL AVE W OFR	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:17	LAW		LVMR	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:17	FIRE		ACRECC	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:17	EMS		ACRECC	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:42	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:12:42	Incident_Type	1 CHP Unit Incident	CHP No Response	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:12:42	Problem	STOP	1015-Prisoner In Custody	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:14:14	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:14:14	Unread Comment	False	True	(Response Viewer)	Incident	GG017	A12772
11/1/2024	01:14:15	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:14:19	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:53:56	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:54:00	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:59:56	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	02:00:57	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	02:07:01	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	02:07:43	Unread Comment	False	True	(Response Viewer)	Incident	GG035	A08297
11/1/2024	02:26:35	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	02:47:26	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	03:26:05	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	03:27:47	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	04:21:56	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	04:23:38	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903

Custom Time Stamps

No Custom Time Stamps

Custom Data Fields

Description	Data	User
EMS	ACRECC	A13903
FIRE	ACRECC	A13903
LAW	LVMR	A13903

Attachments

No Attachment

DUBLIN AREA BEAT ASSIGNMENTS

On Call: *Capt. Serrato* [redacted] ID: 18437 ID: [redacted] C: (209) 595-7368 C: [redacted]

Mon Tue Wed Thu Fri Sat Sun

OCTOBER 31 2024

Graves: 51 - 65 - 53 - 68 - 52 - 64

#	Beat	Name	ID	Veh	LIDAR	ECD	PAS	MISC	LL
S	S4	[redacted]	[redacted]						
S	S7	[redacted]	[redacted]						
1		[redacted]	[redacted]						
2		[redacted]	[redacted]						
3	51	[redacted]	[redacted]	19		10	25		
4	51	[redacted]	[redacted]			24			
5		[redacted]	[redacted]						
6		[redacted]	[redacted]						
7	68	Melano (SRT)	23054	18	7	3	3		
8	68	Meza-Gonzales	23295			13			
9		[redacted]	[redacted]						
10	65	[redacted]	[redacted]	10		26	31		
11	53	[redacted]	[redacted]	24		5	26		
12	53	[redacted]	[redacted]			4			
13	61	[redacted]	[redacted]			8			

BEAT	NAME	ID	VEH	LIDAR	ECD	PAS	LL#

Key: O=Office X= Follow Up R=Repair/calibrate
M=w/motor P=Previous Shift

N=Not in Service F=Field

Shift Notes:

Overtime Units:		ID	VEH	LIDAR	ECD	PAS	10-8	10-10	LOG#	LOCATION	PARTNER ID
1											
2											
3											
4											
5											
6											
7											
8											
9											
10											

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

DRIVING UNDER THE INFLUENCE ARREST – INVESTIGATION REPORT

CHP 202 (Rev. 2-24) OPI 066

☒ Misdemeanor ☐ Felony ☐ Domestic Violence (Refer to HPM 100.69)

COURT	FILE NUMBER	EVIDENCE/PROPERTY
East County Hall of Justice	202400898	☐ YES ☒ NO

AREA	BEAT	CRASH REPORT NUMBER
390	052	N/A

E- _____

LAST NAME, FIRST NAME, AND MIDDLE INITIAL: **Newanforbi, Brendan, Ngehsi**

DATE/TIME OF ARREST/REPORT	DATE/TIME OF INCIDENT ☐ SAME	LOCATION OF ARREST/INCIDENT	WMVARS/MVARS
11/01/2024 0112	11/01/2024 0055	I-580 eastbound, west of Isabel Avenue	☒ YES ☐ NO WMVARS

CAD NUMBER ☐ NONE	CITATION NUMBER	OFFENSE(S) CHARGED OR INVESTIGATED	JUS 8715 REQUIRED
241101GG0064	RJ68845	23152(a) VC, 23152(b) VC	☒ YES ☐ NO NUMBER:

SUBJECT NO 1 OF 1

NAME (last, first, middle)	RESIDENCE ADDRESS
Newanforbi, Brendan, Ngehsi	1455 Cat Tail Drive Stockton CA, 95204

AKA	HOME PHONE	MAILING ADDRESS
Not asked	Not asked	☒ SAME

RACE	ETHNICITY	SEX	BIRTHDATE	DISPATCH NOTIFIED
Black or African American	Not Hispanic or Latino	Male	09/16/1996	☒ YES ☐ NO TIME: 0326

DRIVER LICENSE NUMBER	STATE	DDL STATUS	HAIR	EYES	HEIGHT	WEIGHT	PLACE OF BIRTH (city, state, country)	ID:
F7953179	CA	Valid	BLK	BRN	508	225	Camaroon	A13903

EMPLOYER	BUSINESS PHONE	BUSINESS ADDRESS	MISC. (SSN, INS #, ETC.)
Self employed	Not asked	Not asked	Not asked

BOOKING, CII, FBI, ETC., NUMBER(S)	WHERE BOOKED/CONFINED	DATE/TIME	FINGERPRINTED
CAR913358	Santa Rita Jail	11/01/2024 0325	☒ YES ☐ NO

NOTIFICATION (*Who, How, When*), EXPLAIN IN NARRATIVE — NOTIFIED BY

☐ JUVENILE ☐ FOREIGN NATIONAL ☐ IMMUNITY CLAIM

VEHICLE

LICENSE	STATE	REG. YEAR	VIN/EN NUMBER	VEHICLE WAS	STORAGE AUTHORITY
9EAX768	CA	2025	7SAYGDEE3PF638736	☒ STORED ☐ PARKED ☐ RELEASED ☐ RECOVERED ☐ IMPOUNDED	22651(h)(1) VC

VEH YEAR	MAKE	MODEL	COLOR	BODY TYPE	LOCATION OF VEHICLE/RELEASED TO/ADDRESS/TELEPHONE NUMBER
2023	Tesla	Model Y	Gray	SUV	United Towing - (925) 888-8880

NAME OF REGISTERED OWNER ☐ SAME AS SUBJECT	ADDRESS ☐ SAME AS SUBJECT
PV Holding Corp.	5721 W. 96th Street Los Angeles CA, 90045

NAME OF LEGAL OWNER ☐ SAME AS R/O	ADDRESS	LOCATION OF KEYS
The bank of New York Mellow Trust Company	26933 Northwestern Hwy Southfield MI, 48033	With tow

WITNESS/PASSENGER/VICTIM

BIRTHDATE	SEX	NAME	ADDRESS/AGENCY	PHONE
	M	☒ WITNESS ☐ PASSENGER ☐ VICTIM Officer Melano ID 023054	4999 Gleason Drive Dublin CA, 94568	RES: N/A BUS: (925) 828-0466
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:

ADMONITION OF RIGHTS

1. YOU HAVE THE RIGHT TO REMAIN SILENT.
2. ANYTHING YOU SAY CAN AND WILL BE USED AGAINST YOU IN A COURT OF LAW.
3. YOU HAVE THE RIGHT TO TALK WITH AN ATTORNEY AND TO HAVE AN ATTORNEY PRESENT BEFORE AND DURING QUESTIONING.
4. IF YOU CANNOT AFFORD AN ATTORNEY, ONE WILL BE APPOINTED FREE OF CHARGE TO REPRESENT YOU BEFORE AND DURING QUESTIONING, IF YOU DESIRE.

THE ABOVE STATEMENT WAS READ TO THE ARRESTEE BY:

☒ NOT ADVISED ☐ ARRESTING OFFICER ☐ OR: ID: TIME:

DO YOU UNDERSTAND EACH OF THESE RIGHTS I HAVE EXPLAINED TO YOU?	HAVING THESE RIGHTS IN MIND, DO YOU WISH TO TALK TO US NOW?	WAIVER STATEMENT
☐ YES ☐ NO	☐ YES ☐ NO	

MISDEMEANOR INCARCERATION (To be completed upon physical arrest for any misdemeanor, pursuant to Section 853.6 of the Penal Code.)
As determined by the arresting officer, the person arrested:

1. ☐ was so intoxicated as to be a danger to themself or others.
2. ☐ required medical examination or medical care or was otherwise unable to care for their own safety.
3. ☒ was arrested under one or more of the circumstances listed in Sections 40302 and 40303 of the California Vehicle Code (Note 5 and 8 if also applicable).
4. ☐ had one or more outstanding arrest warrants issued.
5. ☐ could not provide satisfactory evidence of personal identification.
6. ☒ if released immediately, would jeopardize the prosecution of the offense or offenses for which arrested or the prosecution of any other offenses.
7. ☒ would be reasonably likely to continue the offense or offenses, or the safety of persons or property would be imminently endangered if immediately released.
8. ☐ demanded to be taken before a magistrate or refused to sign the citation.
9. ☐ would not appear at the time and place specified in the notice.
10. ☐ Other:

ARRESTING/INVESTIGATING OFFICER (*Print name/rank*)	ID NUMBER	REVIEWED BY (*Print name/rank*)	ID NUMBER	DATE
Meza / Officer	023295	SGT. DEAL	17747	11/5/24

Newanforbi, Brendan, Ngehsi | **RJ68845**

* Asked prior to FSTs

INVESTIGATION INTERVIEW

DO YOU KNOW OF ANYTHING MECHANICALLY WRONG WITH YOUR VEHICLE ? DESCRIBE. ☐ YES ☒ NO

ARE YOU SICK OR INJURED? DESCRIBE. ☒ YES ☐ NO: Pre-Diabetic

ARE YOU DIABETIC OR EPILEPTIC? ☒ YES ☐ NO

DO YOU TAKE INSULIN? *(Pills/Injection)* ☐ YES ☒ NO

DO YOU HAVE ANY PHYSICAL IMPAIRMENTS? DESCRIBE. *(Feet, Legs, Ankles, or Hips)* ☐ YES ☒ NO

WHEN DID YOU LAST SLEEP? Right now

HOW LONG? 7 Minutes

WHEN DID YOU LAST EAT? 11:30 PM

DESCRIBE: Hot dog

WERE YOU DRIVING THE VEHICLE? ☒ YES ☐ NO ☐ N/A

IF NO, WHO?

WHERE DID YOU START DRIVING? Oakland

WHERE WERE YOU GOING? Stockton

WHERE WERE YOU STOPPED? Livermore

WHAT HAVE YOU BEEN DRINKING? Nothing

HOW MUCH? Not asked

TIME STARTED? Not asked

TIME STOPPED? Not asked

LOCATION WHERE YOU WERE DRINKING? Not asked

NAME/ADDRESS

DO YOU FEEL THE EFFECTS OF THE DRINKS? DESCRIBE. Not asked ☐ YES ☐ NO

DID YOU BUMP YOUR HEAD? ☐ YES ☒ NO ☐ N/A

HAVE YOU BEEN DRINKING SINCE THE ACCIDENT? ☐ YES ☐ NO ☒ N/A

IF YES, WHAT?

HOW MUCH?

ARE YOU UNDER CARE OF A DOCTOR OR DENTIST? ☐ YES ☒ NO

IF YES, NAME/ADDRESS

RECENT SURGERY PERFORMED? ☐ YES ☒ NO **(Explain in Narrative)*

HAVE YOU TAKEN ANY MEDICINE OR DRUGS? ☐ YES ☒ NO

IF YES, WHAT?

HOW MUCH?

TIME OF LAST DOSAGE?

DO YOU FEEL THE EFFECTS OF THE MEDICINE/DRUGS? DESCRIBE. ☐ YES ☒ NO

OBJECTIVE SIGNS/APPEARANCE/FIELD SOBRIETY TEST LOCATION

BREATH ODOR OF ALCOHOLIC BEVERAGE PRESENT:	GLASSES/LENSES	EYES (appearance)	DEMEANOR	SPEECH
Strong ☒ YES ☐ NO	☐ YES ☒ NO	Red and watery	Compliant	Slurred

CLOTHING WORN: CONDITION AND DESCRIPTION

Worn condition: Black shirt, green pants, and black slides

DESCRIBE TEST LOCATION, SURFACE, WEATHER, AND LIGHTING

Dirt shoulder: Clear, cool, and dry with patrol vehicle lights and flashlight

PRELIMINARY ALCOHOL SCREEN INFORMATION

P.A.S. Admonition: I am requesting that you take a preliminary alcohol screening test to further assist me in determining whether you are under the influence of alcohol. You may refuse to take this test; however, this is not an implied consent test and, if arrested, you will be required to give a sample of your blood, breath, or urine for the purpose of determining the actual alcoholic and drug content of your blood.

THE SUBJECT WAS ADVISED OF THE ABOVE STATEMENT BY:

☐ NOT ADVISED ☒ ARRESTING OFFICER ☐ OR ID: TIME: 0111

PAS SERIAL NUMBER	TEMPERATURE	ZEROED	RESULTS NO. 1	TIME 1	RESULTS NO. 2	TIME 2	RESULTS NO. 3 *(if needed)*	TIME 3
		☐ YES ☐ NO	☒ Refused					

LOCATION OF TEST	BREATH SAMPLE	OFFICER ADMINISTERING PAS TEST	ID NUMBER	AREA
☐ At scene	☐ Automatic ☐ Manual	☐ ARRESTING OFFICER ☐ OR		

CHEMICAL TEST INFORMATION

☒ Implied Consent Admonishment, Section 23612 CVC

☒ Refused Test(s) (Complete DS 367)

DRUG ADMONISHMENT ☒ N/A ☐ Yes ☐ Refused (Complete DS 367)

ATTACHMENTS ☐ CHP 202 DRE ☐ OTHER

TYPE OF TEST	TIME	ID OF SAMPLE(S)	RESULTS, IF AVAILABLE	DISPOSITION OF SAMPLE(S)
1 ☐ Breath				
2 ☒ Blood	0238	RJ68845	Pending	CHP Dublin Area Blood Evidence Locker
3 ☐ Urine				

TEST GIVEN	LOCATION WHERE TEST WAS CONDUCTED	NAME AND TITLE OF PERSON GIVING TEST OR TAKING SAMPLE
1		☐ ARRESTING OFFICER ☐ OR
2	CHP Dublin Area Office	☐ ARRESTING OFFICER ☒ OR Phlebotomist Aziza Ghaleb
3		☐ ARRESTING OFFICER ☐ OR

CHEMICAL TEST ADVISEMENT

A. The breath testing equipment does NOT retain any breath sample for later analysis by you or anyone else.

B. If you want a sample retained, you may provide a blood or urine sample that will be retained at no cost to you. If you do so, the blood or urine sample may be tested for alcoholic or drug content by either party in a criminal prosecution.

C. Do you wish to provide an additional sample? ☐ YES ☐ NO ☒ N/A

WATSON ADVISEMENT

You are hereby advised that being under the influence of alcohol or drugs, or both, impairs your ability to safely operate a motor vehicle. Therefore, it is extremely dangerous to human life to drive while under the influence of alcohol or drugs, or both. If you continue to drive while under the influence of alcohol or drugs, or both, and, as a result of that driving, someone is killed, you can be charged with murder.

DO YOU UNDERSTAND ☒ YES ☐ NO _____ READ VERBATIM: ☒ YES ☐ NO ☐ DID NOT ADVISE (Explain in narrative)

☒ ARRESTING OFFICER ☐ OR _____ ID: _____ ☐ N/A

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

FIELD SOBRIETY TESTS:

*All FSTs were explained and demonstrated in English by myself. Newanforbi stated he understood each test prior to performing each test. Newanforbi was asked and answered a series of FST questions prior to performing the FSTs. Notes were taken on 3x5 notepad, transferred to the report, and thrown out upon completion of the report. All times throughout this report were taken by my Iphone, unless otherwise stated.

Horizontal Gaze Nystagmus: Newanforbi displayed the following in both his eyes: Equal pupils, equal tracking, lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and the onset of nystagmus prior to 45 degrees. Newanforbi also displayed lack of convergence.

Modified Romberg Balance: Newanforbi estimated the passage of 30 seconds to be an actual 43 seconds. Newanforbi displayed eyelid flutters.

One Leg Stand: Newanforbi chose not to perform this test and related it was difficult.

Walk and Turn: Newanforbi chose not to perform this test and related it was difficult.

Preliminary Alcohol Screening Device (PAS): I advised Newanforbi of the PAS admonishment and he refused to take the test.

FIRST OBSERVATIONS:

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

OBSERVATIONS UPON CONTACT:

I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was in a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I directed the male to exit the Tesla and walk to the right front of my patrol vehicle where I conducted a DUI evaluation. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Newanforbi a series of field sobriety test questions and while speaking with Newanforbi, I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person. I explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated.

ARREST:

Based on the following, I formed the opinion that Newanforbi drove to this location while under the influence of alcohol, a violation of California Vehicle Code 23152(a) per 40300.5 VC:

1. Newanforbi displayed objective signs and symptoms of intoxication.
2. Newanforbi stated that he had driven the vehicle to this location.
3. The driver's seat was adjusted to that of a person of Newanforbi's stature.
4. Newanforbi's answers to the Pre-FST questions.
5. Newanforbi's poor performance on the FST's.
6. Newanforbi related he did not have any alcoholic beverages since he stopped on the shoulder.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

ARREST (Continued):

At 0112 hours, I placed Newanforbi under arrest for a violation of California Vehicle Code section 23152 (a), driving while under the influence of alcohol, per 40300.5 VC.

I placed Newanforbi in handcuffs, they were then adjusted to proper fit and double locked. Newanforbi was then placed in the right rear passenger seat of my patrol vehicle. During this investigation a Department of Motor Vehicles (DMV) driving history for Newanforbi was requested through the GGCC. The GGCC advised his license status was valid and was on parole for 289(a)(1) PC. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Newanforbi chose to refuse any chemical testing. Newanforbi was then transported to the CHP Dublin Area Office, where I wrote an affidavit for Newanforbi's blood. Judge A. Sekany approved the affidavit at approximately 0234 hours (WAR913372). At approximately 0238 hours, I received two vials of blood from Newanforbi's right arm by phlebotomist Aziza Ghaleb. The blood sample was sealed and secured in the CHP Dublin Area Blood Evidence locker for analysis by the Department of Justice. Newanforbi was then transported to Santa Rita jail, where he was booked at approximately 0325 hours for 23152(a) VC.

RECOMMENDATIONS:

I recommend that a copy of this report be forwarded to the Alameda County District Attorney's office for the review of the following charges against Brendan Ngehsi Newanforbi:

- 23152(a) VC - DUI Alcohol
- 23152(b) VC - .08% BAC or above (Pending Results)

Upon successful prosecution of the above charges, I recommend the following enhancements be charged against Newanforbi:

- 23578 VC - Chemical Test Refusal

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP851B

Agency #: RJ68845

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Confirmation/Screen Results

Analyte Name	Concentration	Units	Method	Sample Type
Ethanol	0.073 ± 0.004	grams %	Headspace GC-FID	Blood

The measurement of uncertainty value is ± 4.9% with a coverage probability of approximately 99.73%

Comments: Laboratory activity performed between 11/14/2024 and 11/15/2024. Analysis of alcohols performed at Ascertain Forensics located at 3700 Westwind Blvd., Santa Rosa, CA.

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

Analysis was performed by a California Department of Public Health approved Forensic Alcohol Analyst. The equipment used for analysis was in proper working order and the reporting of the results was done using a method approved under the state of California Title 17 Code of Regulations.

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer:

Mireya Olivares
Forensic Analyst

Technical Reviewer:

Gregory A Priebe, M.S., D-ABFT-FT
Senior Forensic Toxicologist

Date report released: November 25, 2024

AGO 000034

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP007B - Drugs of Abuse Pnl
FP009B - General Drug Panel
F3018B - THC

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Screen Results

Analyte Name	Result	Cutoff	Method	Sample Type
Amphetamine \ MDA	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Barbiturates	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Benzodiazepines	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Buprenorphine	Not Detected	2.0 ng/mL	LC/QTOF-MS	Blood
Carisoprodol	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Cocaine Metabolite	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Fentanyl	Not Detected	0.5 ng/mL	LC/QTOF-MS	Blood
Marijuana Metabolite	Positive	10 ng/mL	LC/QTOF-MS	Blood
Methadone	Not Detected	20 ng/mL	LC/QTOF-MS	Blood
Methamphetamine \ MDMA	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Opiates	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Oxycodone \ Oxymorphone	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
PCP	Not Detected	2.5 ng/mL	LC/QTOF-MS	Blood
Tramadol	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Zolpidem	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood

Confirmation/Screen Results

Analyte Name	Concentration	Units	Method	Sample Type
delta 9-Tetrahydrocannabinol (THC)	Not Detected		LC-MS-MS	Blood
11-hydroxy-THC (11-OH-THC)	Not Detected		LC-MS-MS	Blood
11-nor-THC-9-carboxylic acid (THC-COOH)	3.0	ng/mL	LC-MS-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: Laboratory activity performed between 11/15/2024 and 11/25/2024.

Date report released: December 5, 2024

AGO 000035

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer: Lacey Navé

Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow

Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP007B - Drugs of Abuse Pnl

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Screen Results

Analyte Name	Result	Cutoff	Method	Sample Type
Cocaine Metabolite	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Fentanyl	Not Detected	0.5 ng/mL	LC/QTOF-MS	Blood
Methamphetamine \ MDMA	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Opiates	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
PCP	Not Detected	2.5 ng/mL	LC/QTOF-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: None

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Case Reviewer: Lacey Nave
Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow
Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024

AGO 000037

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP009B - General Drug Panel

Agency #: RJ68845

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Screen Results

Analyte Name	Result	Cutoff	Method	Sample Type
Barbiturates	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Benzodiazepines	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Buprenorphine	Not Detected	2.0 ng/mL	LC/QTOF-MS	Blood
Carisoprodol	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Marijuana Metabolite	Positive	10 ng/mL	LC/QTOF-MS	Blood
Methadone	Not Detected	20 ng/mL	LC/QTOF-MS	Blood
Oxycodone \ Oxymorphone	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Tramadol	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Zolpidem	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: None

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

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Case Reviewer: Lacey Nave
Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow
Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024

AGO 000038

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: F3018B - THC

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Confirmation/Screen Results

Analyte Name	Concentration	Units	Method	Sample Type
delta 9-Tetrahydrocannabinol (THC)	Not Detected		LC-MS-MS	Blood
11-hydroxy-THC (11-OH-THC)	Not Detected		LC-MS-MS	Blood
11-nor-THC-9-carboxylic acid (THC-COOH)	3.0	ng/mL	LC-MS-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: None

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

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Case Reviewer: Lacey Nave

Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Jim W. Grambow

Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024

AGO 000039

AGE 21 AND OLDER OFFICER'S STATEMENT

California Vehicle Code (CVC) §§13353, 13353.1, 13353.2 & 13389

A Public Service Agency

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
RJ68845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWAN FORBI, BRENDAN, N	F7953179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
~~NEWAN FORBI~~ 1455 CAT TAIL DR	STOCKTON CA	95206

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
9/16/96	M	BLK	BRN	508	225

Arrest Type For statistical purposes only. Check all that apply.
☒ Alcohol Use ☐ Cannabis Use ☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

VEHICLE: License Number or VIN: 9EAX768
☐ **Commercial Vehicle:** Vehicle requires a commercial driver license (CVC §15210). ☐ **Hazardous Materials:** Transporting materials requiring placards/markings (CVC §27903).

NARRATIVE: Describe in detail the facts, observations, and circumstances that led to the stop or contact with the driver in ***Narrative*** section on **Page 2** of this form.

Contact: On date: 11/01/24 at 12:55 ☒ AM ☐ PM in City/County LIVERMORE / ALAMEDA CA, the above driver was contacted.

DRIVING: ☐ Driving observed by this officer or ☐ Driving observed by another observer (complete ***Observation/Arrest*** section on Page 2)
Admission of Driving: ☒ Driver admitted to driving the vehicle **Collision:** ☐ Driver involved in a collision

TIME: (If driving not observed by an officer.)
What time did you stop driving or how long after driving/collision did you wait for law enforcement to arrive? **Driver Response:** 7 ☐ AM ☐ PM ☐ HR ☒ MIN

ARREST OR DETENTION STATEMENT: I had reasonable cause to believe the driver was driving a motor vehicle with alcohol and/or drugs present in the blood or while under the influence. The driver was lawfully arrested, or lawfully detained while on DUI probation, by this officer, or by the person shown in the ***Observation/Arrest*** section on Page 2, on date 11/01/24 at 1:12 ☒ AM ☐ PM for violation of CVC §§23152, 23153, or 23154.

OBJECTIVE SYMPTOMS OF INTOXICATION: ☒ Bloodshot/watery eyes ☒ Odor of alcoholic beverage ☐ Unsteady gait ☒ Slurred speech ☐ PAS results (*complete below*)
☒ Other: POOR FSTS Observed by: ☒ This officer ☐ Another observer: _____

PRELIMINARY ALCOHOL SCREENING TEST (PAS)

DUI Probation: Required. Non-DUI Probation: Optional. Always complete section if PAS results available.

Driver submitted to and completed a PAS test with the results of:

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

OFFICER CERTIFICATION: I certify under penalty of perjury under the laws of the State of California that: **(1)** I obtained the above PAS test results in the regular course of my duties, **(2)** I used PAS Model (*Name/Number*) REFUSED, Serial# _____, Manufactured by _____, **(3)** I administered this PAS test properly in accordance with the manufacturer's guidelines and instructions, **(4)** I have received training on the proper operation of this device and administration of the PAS test and am competent and qualified to operate the device, and **(5)** the device was functioning properly at the time of the test.

Date / / Signature X Badge/ID Number Agcy./Div

CHEMICAL TEST

Attach copy of the results, if available.

Breath Test Results:

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ at _____ ☐ AM ☐ PM **Test 3** _____ % BAC on ___/___/___ at _____ ☐ AM ☐ PM (*WHEN APPLICABLE*)

BREATH TEST MACHINE OPERATOR CERTIFICATION: I certify under penalty of perjury under the laws of the State of California, that the above breath test sample results were obtained in the regular course of my duties. I further certify that I am qualified to operate this equipment and that the test was administered pursuant to the requirements of Title 17 of the *California Code of Regulations*.

Date / / Signature X Badge/ID Number Agcy./Div

BLOOD TEST RESULTS: Blood test on date: 11/01/24 at 7:38 ☒ AM ☐ PM

URINE TEST RESULTS: First void on date: / / at ☐ AM ☐ PM Test on date: / / at ☐ AM ☐ PM

I certify under penalty of perjury, under the laws of the State of California, that the information contained on all pages of this Officer's Statement is true and correct.

EXECUTED ON: Date 11/1/24 in City LIVERMORE County ALAMEDA

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER
MEZA	23295	(925) 828-0466
AGENCY	**AREA**	**COURT CODE** (*IF UNKNOWN, COURT NAME*)
CHP	39	01435

I ☒ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date 11/1/24 Signature of Arresting Officer X

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by another officer have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date Serving Officer's *Printed* Name Badge/ID Number Signature Of Serving Officer
/ / X

DMV — A Public Service Agency

AGE 21 AND OLDER OFFICER'S STATEMENT

CVC §§13353, 13353.1, 13353.2 & 13389

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
KS68845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWANFORBI, BRENDAN, N	F7953179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
NEWANFORBI 1455 CAT TAIL DR STOCKTON	CA	95204

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
9/16/96	M	BLK	BRN	508	225

Arrest Type
For statistical purposes only. Check all that apply.
- ☒ Alcohol Use
- ☐ Cannabis Use
- ☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

OBSERVATION/ARREST: If driving or collision was observed by someone other than the arresting officer, **or** if arrest was completed by another officer or person, input that person's information.

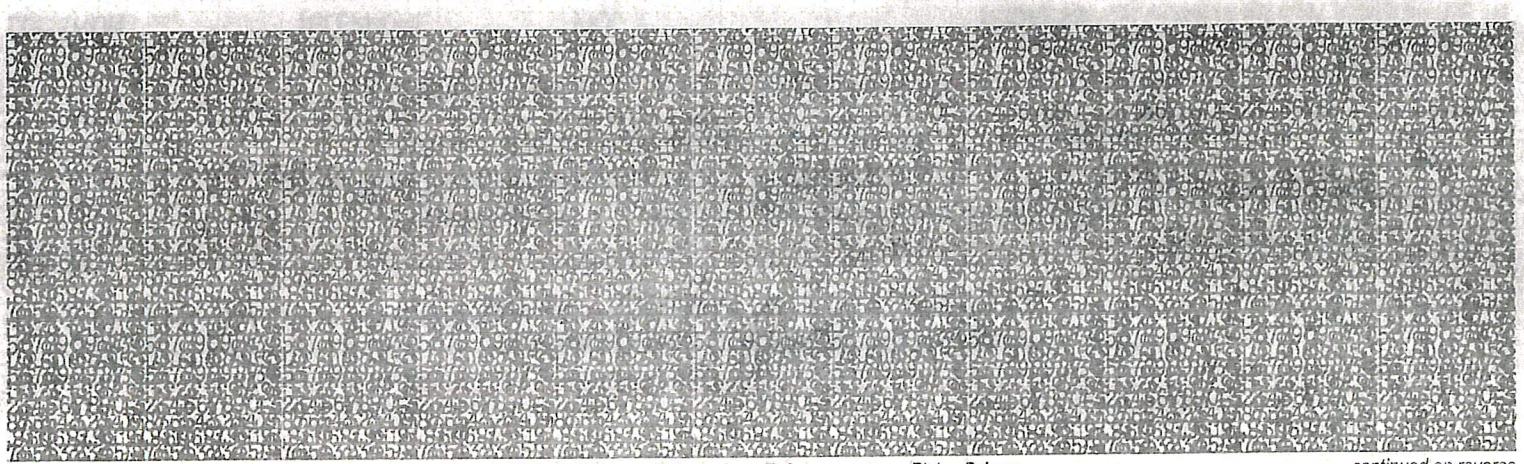
☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen	☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen
NAME (*PLEASE PRINT*)		NAME (*PLEASE PRINT*)	
ADDRESS		ADDRESS	
TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION	TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION

NARRATIVE

Describe in detail the facts, observations, and circumstances that led to the stop or contact. Print or write directly on this page.
A portion of another report may be **cut and pasted** below but should be dated and contain an original signature.
Attach arrest, collision, and/or supplemental report(s) if available.
If arrest was made per CVC **§40300.5** state the facts and circumstances that support the arrest.
DUI Probation Violations: Indicate below how you determined the driver was on DUI probation.

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

S.M 11/1/24



AGE 21 AND OLDER ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ORDER AND TEMPORARY DRIVER LICENSE

DS 367

A Public Service Agency

Driver **must** be given a copy of this order. **DMV telephone number (916) 657-0214.**

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY

DRIVER NAME (*LAST, FIRST, M.I.*)	DRIVER LICENSE NUMBER	COMMERCIAL? ☐ Yes ☐ No	STATE
MAILING ADDRESS	STATE	ZIP CODE	
DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT

Arrest Type
For statistical purposes only. Check all that apply.
☐ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☐ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☑ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

You are hereby notified that your privilege to operate a motor vehicle will be suspended or revoked effective 30 days from the issue date of this order as shown below, and until you pay a $125 reissue fee and file proof of financial responsibility as shown on the reverse.

For additional information call (916) 657-0214.

TEMPORARY DRIVER LICENSE

This document must be carried with you and shall serve as your temporary California driver license. It is subject to the same class(es) and all restrictions as your permanent driver license. **This temporary driver license does not provide you with any driving privileges if you do not have a California driver license or your license is expired, suspended, revoked, canceled, or denied.** It expires at midnight 30 days from the issue date of this order shown below.

This action is taken under authority of *California Vehicle Code* (CVC) §§13353, 13353.1, 13353.2 and 13389 because you were arrested or detained for driving under the influence of alcohol and/or drugs and:

BAC 0.01% PAS, Breath, Blood or Urine Test DUI Probation	You completed a PAS, breath, blood, or urine test and the officer believes the results will show 0.01% BAC or more. If the laboratory results show your BAC was less than 0.01%, this suspension will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.08% Breath, Blood, or Urine Test	You completed a breath test with 0.08% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.08% BAC or more. If the laboratory results show that your BAC is less than 0.08%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.04 % Breath, Blood or Urine Test while driving a Commercial Vehicle	You completed a breath test with 0.04% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.04% BAC or more. If the laboratory results show that your BAC is less than 0.04%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
Chemical Test Refusal	You refused to submit to, or failed to complete, a chemical test of the alcohol and/or drug content of your blood.

COMMERCIAL DISQUALIFICATION

A commercial disqualification action will be taken due to any of the following: if you refused a chemical test, if you had a 0.04% BAC or more while operating a commercial motor vehicle as defined in CVC §15210 or while transporting hazardous materials, or held a commercial driver license and were driving any vehicle when you had a 0.08% BAC or more.

HEARING INFORMATION

YOU HAVE **10 DAYS** FROM RECEIPT OF THIS NOTICE TO REQUEST A HEARING TO SHOW THAT THE SUSPENSION OR REVOCATION IS NOT JUSTIFIED. ***The suspension or revocation will not be stayed (delayed) unless you request a hearing within 10 DAYS from the issue date of this order and DMV cannot provide a hearing before the effective date of the suspension or revocation and make a determination.*** Hearings are conducted only to determine questions of fact as described on the reverse. Your need for a license cannot be considered at a hearing. **If you want a hearing or have questions regarding this matter, contact the DMV at (916) 657-0214.** A telephone hearing will be conducted unless you request an in-person hearing. Before the hearing you may see or obtain copies of the department's evidence. ***You must request copies of the department's evidence at least 10 DAYS prior to the date set for commencement of the hearing in order to receive them prior to the hearing date.*** If you want the information released to someone else, give them signed permission. ***You have the right to have a sign or language interpreter present at your hearing. If you require the service of an interpreter, immediately notify DMV of the need for such service. During the hearing*** you may present oral testimony and/or other evidence. Testimony is taken under oath or affirmation, and the hearing is recorded. You may be represented by legal counsel, or you may represent yourself. The arresting officer(s) may be subpoenaed in this matter, if it is determined that his or her testimony is needed. If you wish to question the arresting officer(s), you have the right to have subpoenas issued on your behalf. You may subpoena any other witness(es) you feel may help your case, and you have the right to cross-examine any opposing witness(es). Blank subpoenas may be obtained on the internet at the following address ***http://www.dmv.ca.gov/portal/dmv/detail/forms/formsds*** or provided to you by the hearing officer upon request prior to the hearing. You are responsible for service of your subpoena(s) and any witness fee required by law. ***After the hearing,*** the hearing officer shall make findings and render a decision.

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER ( )
AGENCY	AREA	COURT CODE (*IF UNKNOWN, COURT NAME*)

I ☐ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date / / Signature of **Arresting** Officer X

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by **another Officer** have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date	Serving Officer's *Printed* Name	Badge/ID Number	Signature Of Serving Officer
/ /			X

AGO 000042

continued on reverse

CHEMICAL TEST ADMONITION

(CVC §§23154, 23612)

I admonished the driver on date: 11 / 1 / 24 at 0130 ☒ AM ☐ PM

1. You are required by state law to submit to and complete a chemical test to determine the alcohol and/or drug content of your blood.
2. Because I believe you are under the influence of alcohol or a combination of alcohol and drugs, you have a choice of taking a breath or blood test. If you are on DUI Probation you are required to submit to a Preliminary Alcohol Screening Test.
3. Availability of Tests. (*Read only when applicable.*)
   - ☐ **When Applicable:** Since the breath and blood tests are unavailable; you are incapable of completing a breath or blood test; or you are afflicted with hemophilia or are using an anticoagulant medication, you are deemed to have given your consent to chemical testing of your urine.
   - ☐ **When Applicable:** Since you need medical treatment, your choice is limited to the (*check all available*) ☐ blood, ☐ breath, and/or ☐ urine test(s), the only test(s) available at _____.
4. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years** by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21; or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
5. Refusal or failure to complete a chemical test may be used against you in court.
6. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
7. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.
8. If you cannot, or state you cannot, complete the test you choose, you must submit to and complete a remaining test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Preliminary Alcohol Screening Test?** (*DUI Probation*) _____

☐ **Will you take a Breath Test?** _____

☐ **Will you take a Blood Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ PAS test unavailable ☐ Breath test unavailable ☐ Blood test unavailable

Explain:

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

Admonition Read by a Different Officer: If the above Chemical Test Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY /DIVISION	TELEPHONE NUMBER
			( )

DRUG ADMONITION

1. Because I believe you are under the influence of drugs or a combination of drugs and alcohol, you are required by state law to submit to a blood, breath, or urine test. A urine test is available only if you are afflicted with hemophilia or are using an anticoagulant medication.
   - ☐ **When Applicable:** Because you have already submitted to or refused or failed to complete a breath test **or** a breath test is unavailable, your choice is limited to a blood test or a urine test, when applicable.
2. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years**, by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21, or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
3. Refusal or failure to complete a chemical test may be used against you in court.
4. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
5. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Blood Test?** _____

☐ **Will you take a Urine Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ Blood test unavailable ☐ Urine test unavailable

Explain:

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

Admonition Read by a Different Officer: If the above Drug Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY/DIVISION	TELEPHONE NUMBER
			( )

continued on next page

County of Alameda

DAILY

DECLARATION AND DETERMINATION
Probable Cause for Warrantless Arrest

Arrestee/Suspect	DOB	Sex	PFN
BRENDAN NEWANFORBI	09/16/1996	M	BOC470

Race	CDL	Agency Report #
BLACK	F7953179 CA	RJ68845

Arresting Agency	Declarant	Agency Phone	Agency Fax
CALIFORNIA HIGHWAY PATROL, DUBLIN	SANTIAGO MEZA-GONZALES	(925) 828-0466	

Arrest Date	Arrest Time	Arrest Location
11/01/2024	01:12:00	

Holds	Arrestee Home Address

Charges/Violations

VC 23152(A) M(1 Counts)

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

I declare under penalty of perjury that the above information was obtained through official police channels and is contained in the above-mentioned police report. Executed in the County of Alameda, State of California. Identity and signature of declarant verified by CRIMS.

Date: 11/01/2024 21:58:43 Declarant: SANTIAGO MEZA-GONZALES Badge: 023295

On the basis of the foregoing declaration, I hereby determine that there is/is not probable cause to detain this arrestee.

Date: Judge:

Disposition Date	Disposition
	( )

Document #: PCD913527

AGO 000044

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL
NOTICE TO APPEAR
CHP 215 (REV. 01-24)

RJ68845

NOTICE TO:
☐ APPEAR IN COURT AT TBD ☐ AM ☐ PM ON:
OR
☐ RESPOND TO CITATION **BEFORE:**
☑ To be notified
DATE: I / B / D
See back for detailed instructions

WHERE: ☑ SUPERIOR COURT ☐ JUVENILE
ADDRESS: 5151 GLEASON DR DUBLIN CA 94568
PHONE NO.: 925 277 6700
COURT'S WEBSITE: http://www.courts.ca.gov/find-my-court.htm
ACT BY THIS DATE TO AVOID A WARRANT OR ADDED FEES

Date of Violation (mm/dd/yy)	Time	Day of the Week	
11/1/24	0112 ☑ AM ☐ PM	S M T W T (F) S	☐ 215S ☐ Crash

Name (first, middle, last): BRENDAN NGEMSI NEWANFORBI
Current Address (no., street): 1455 CAT TAIL DR
City: STOCKTON State: CA Zip Code: 95204
Driver's License Number (all states): F7953179 State: CA Commercial ☐ Y ☑ N Insurance ☑ Y ☐ N Date of Birth (mm/dd/yy): 9/16/96
Sex: M Hair: BLK Eyes: BRN Height: 508 Weight: 225 Race / Ethnicity: B ☐ Commercial Vehicle (§15210(b) CVC) ☐ Hazardous Material (§353 CVC)
Vehicle License/VIN: 9EAX768 State: CA Reg. Exp.: 01/25
Year of Veh.: 23 Make: TESLA Model: Y Body Style: SUV Color: GRY Veh. Type: 07
Registered Owner/Lessee ☐ Same as driver ☐ Owner's responsibility (§40001 CVC): PV HOLDING CORP
Address (no., street, city, state, zip) ☐ Same as driver: 5721 W. 96TH ST, LOS ANGELES, CA 90045
Reason for Stop: NON-EMERGENCY STOP ON FWY CHP / DOT / PUC / ICC

CITATION DETAILS ☐ Booking Required *(see reverse)*

Correctable (Fix-It)	Code/Section	Description	M = Misdemeanor I = Infraction (circle)
☐ Y ☑ N	23152(a) VC	- DUI	(M) I
☐ Y ☐ N			M I
☐ Y ☐ N			M I
☐ Y ☐ N			M I

Approx. Speed	PF/Max. Speed	Vehicle Limit	Safe Speed	Special

Location of Violation: E/B 580 W/O ISABEL AVE City/County of Occurrence: LIVERMORE

Beat	Area	Perm. Area	☑ Radar / Lidar Unit / Patrol Vehicle Number	☑ MVARS
52	390		3363	

☑ Violations not committed in my presence, declared on information and belief (§40600 CVC)
I declare under penalty of perjury under the laws of the State of CA that the foregoing is true and correct.

SAME (DECL. DATE) S. MEZA-GONZALES (ARRESTING OR CITING OFFICER) 23295 (I.D. NO.)

DECL. DATE | ARRESTING OFFICER, (if different from above) | PERM AREA | I.D. NO.

I promise to act by the date at the top of this citation. Signing DOES NOT admit guilt.

( ) CELLPHONE - OPTIONAL *(may be used for reminders)*
EMAIL - OPTIONAL *(may be used for reminders)*

X IN CUSTODY
SIGNATURE

RJ68845

Form Adopted for Mandatory Use
Judicial Council of California
TR-130, Traffic/Nontraffic Notice to Appear
§§40500(b), 40513(b), 40522,
40600 CVC; Pen. Code, §853.9
[Rev. Jan. 1, 2024]

RJ68845

SEE REVERSE

+ ☐ 1A ☐ 1B

ALAMEDA COUNTY CONSOLIDATED ARREST REPORT CALIFORNIA HIGHWAY PATROL, DUBLIN 01991

Defendant's MRN Name	MRN PFN	Report Number	
		RJ68845	There is no photo on file.

Defendant's Last Name	First	Middle	Gen	PFN
NEWANFORBI	BRENDAN	NGEHSI		

AKA / Nickname	Juvenile/ Arrest #	AJIS No.

DOB	Age	POB	Height	Weight	Hair
09/16/1996		CM	508	225	BLACK

Eyes	Race	Sex	Facial Hair	Marital Status	Pregnant	Photo Taken
BROWN	BLACK	MALE	Unshaven			

Arrest Date	Arrest Time	Salient Characteristics (SMT's)	ID Confirmed by
11/01/2024	01:12		

Home Address	Court Date/Time
1455 CAT TAIL DR STOCKTON CA 95204	

Business / School Name	Business / School Address	Total Bail

Home Phone	Business Phone	Cell Phone	Driver's License #	Social Sec #	Occupation
			F7953179 CA		

CII #	FBI #	CMS Incident No	Keeper
			N

Electronic Account Type and Value

Misc ID #

Clothing

BLACK SHIRT, GREEN PANTS, GRAY SLIDES

Code Section	Attempted	M/F	Count	Court	CIR	Warrant #	CEN	Bail
23152(A) VC	N	M	1		01			

Location of Arrest	Court Jurisdiction
(I-580 EB WO ISABEL ON RHS)	East County HOJ

Arresting Officer

SANTIAGO MEZA-GONZALES 023295

Transporting Officer

SANTIAGO MEZA-GONZALES 023295

Submitting Officer / Badge# / Agency	Agency Phone	Agency Fax	Duty Station
SANTIAGO MEZA-GONZALES / 023295 / CALIFORNIA HIGHWAY	(925) 828-0466		

Notes

Admonished	By Name	Rights Waived	Words of Invocation / Reason Not Admonished

Modus Operandi

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

VEHICLE REPORT

CHP 180 (Rev. 4-16) OPI 061

NOTE: CHP 180 IS FURNISHED TO ALL PEACE OFFICERS BY THE CALIFORNIA HIGHWAY PATROL

AC 13903

REPORTING DEPARTMENT	LOCATION CODE	DATE / TIME OF REPORT	NOTICE OF STORED VEHICLE DELIVERED PERSONALLY	FILE NO.
CHP DUBLIN	390	11/01/24 @ 0115	☐	

LOCATION TOWED / STOLEN FROM	ODOMETER READING	VIN CLEAR IN SVS?	LIC. CLEAR IN SVS?	DATE / TIME DISPATCH NOTIFIED	LOG NO.
E/B 580 W/O ISABEL	31,745	☒ YES ☐ NO	☒ YES ☐ NO	11/01/24 @ 0153	0064

YEAR	MAKE	MODEL	BODY TYPE	COLOR	LICENSE NO.	☐ ONE ☒ TWO	MONTH / YEAR	STATE
23	TESLA	Y	SUV	GRY	9EAX768		01/25	CA

VEHICLE IDENTIFICATION NO.: 7SAYGDEE3PF638736

ENGINE NO.:

VALUATION BY ☒ OFFICER ☐ OWNER
☐ 0-500 ☐ 501-4000 ☒ 4001+ ☐ $ _____

REGISTERED OWNER
PV HOLDING CORP
5721 W. 96TH ST
LOS ANGELES, CA 90045

☐ SAME AS R/O

LEGAL OWNER
THE BANK OF NEW YORK MELLON
TRUST COMPANY NA
26933 NORTHWESTERN HWY S100
SOUTHFIELD, MI 48033

☒ STORED ☐ IMPOUNDED ☐ RELEASED ☐ RECOVERED - VEHICLE / COMPONENT

TOWING / STORAGE CONCERN *(NAME, ADDRESS, PHONE)*
925-888-8880
UNITED TOWING, 1113 GREENVILLE RD, LIVERMORE, CA 94550

STORAGE AUTHORITY / REASON
22651(h)(1) VC TOW FIRST

REASON FOR STOP
11-26

AIRBAG? ☒ YES ☐ NO ☐ 1 ☒ 2

DRIVEABLE? ☒ YES ☐ NO ☐ JUNK ☒ JUNK

VIN SWITCHED? ☐ YES ☒ NO

CONDITION	YES	NO	ITEMS	YES	NO	ITEMS	YES	NO	ITEMS	YES	NO	TIRES / WHEELS	CONDITION
WRECKED		X	SEAT (FRONT)	X		REGISTRATION	X		CAMPER		X	LEFT FRONT	FAIR
BURNED HULK per 431(c) CVC		X	SEAT (REAR)	X		ALT. / GENERATOR		X	VESSEL AS LOAD		X	RIGHT FRONT	1
VANDALIZED		X	RADIO	X		BATTERY	X		FIREARMS		X	LEFT REAR	
ENG. / TRANS. STRIP		X	TAPE DECK		X	DIFFERENTIAL			OTHER		X	RIGHT REAR	
MISC. PARTS STRIP		X	TAPES		X	TRANSMISSION	X					SPARE	NONE
BODY METAL STRIP		X	OTHER RADIO		X	AUTOMATIC	X					HUB CAPS	NONE
SURGICAL STRIP per 431(b) CVC		X	IGNITION KEY	X		MANUAL		X				SPECIAL WHEELS	NONE

RELEASE VEHICLE TO: ☒ R/O OR AGENT ☐ AGENCY HOLD ☐ 22850.3 CVC

GARAGE PRINCIPAL / AGENT STORING VEHICLE *(SIGNATURE)*

DATE / TIME: 11/1/24 0115

NAME OF PERSON / AGENCY AUTHORIZING RELEASE	I.D. NO.	DATE

SIGNATURE OF PERSON AUTHORIZING RELEASE

CERTIFICATION: I, THE UNDERSIGNED, DO HEREBY CERTIFY THAT I AM LEGALLY AUTHORIZED AND ENTITLED TO TAKE POSSESSION OF THE ABOVE DESCRIBED VEHICLE.

SIGNATURE OF PERSON TAKING POSSESSION

☐ STOLEN VEHICLE / COMPONENT ☐ EMBEZZLED VEHICLE ☐ PLATE(S) REPORT

DATE / TIME OF OCCURRENCE	DATE / TIME REPORTED	NAME OF REPORTING PARTY (R/P)	DRIVER LICENSE NO. / STATE
LAST DRIVER OF VEHICLE	**DATE / TIME**	**ADDRESS OF R/P**	**TELEPHONE OF R/P**
			( )

I CERTIFY OR DECLARE UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF CALIFORNIA THAT THE FOREGOING IS TRUE AND CORRECT.

SIGNATURE OF PERSON MAKING REPORT

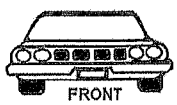
REMARKS

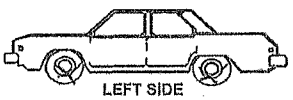
[LIST PROPERTY, TOOLS, VEHICLE DAMAGE, ARRESTS]

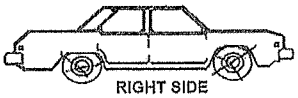
F7953179

DRIVER'S NAME	ARRESTED / SECTION?	REPORTED BY	CARGO / TYPE?	VALUE $
BRENDAN NGEHSI	☒ YES ☐ NO 23152(a) VC	C18-088	☐ YES ☒ NO	☐ BILL OF LADING ATTACHED

NEW ANFORBIE, x2
PROPERTY: MISC BAG, POWER INVERTER, MISC CLOTHES, LAPTOP, STUFF ANIMAL, MISC ELECTRICAL ACCESSORIES, WIRELESS EAR PHONE CASE, MISC COLOGNE
DAMAGE: MISC. DENTS AND SCRATCHES, WHEELS CURB RASHED











AGO 000047

SIGNATURE OF OFFICER TAKING REPORT	I.D. NO.	SUPERVISOR	REQUIRED NOTICES SENT TO REGISTERED ☐ YES	DATE NOTIFIED

SUPERIOR COURT OF CALIFORNIA
County of Alameda

SEARCH WARRANT
DUI Blood Draw
Penal Code § 1524(a)(13)

The People of the State of California **Warrant No:**

To any peace officer in California: **Report No:** RJ68845

Name of arrestee: NEWANFORBI, BRENDAN NGEHSI **DOB:** 09/16/1996

PFN: **SSN:** **DL #:** **DL State:**

Numerical identifier:

Vehicle Code violation: ☑ 23152 ☐ 23153 ☐ 23140

The affidavit below, which was sworn to and subscribed before me on this date, has established the following:

(1) At the date and time listed in the affidavit, the arrestee was lawfully arrested in the above county for the above offense(s) and the arrestee remains in custody.

(2) There is probable cause to believe that laboratory testing of a sample of the arrestee's blood will produce relevant evidence as to arrestee's guilt or innocence.

You are therefore ordered to promptly obtain a sample of the arrestee's blood and submit the sample to an approved laboratory for the purpose of determining its alcohol and/or drug content. This sample shall be obtained in a medically approved manner by a person who is certified to draw blood. Because this warrant authorizes a search for evidence that is constantly dissipating, it may be executed at any hour of the day or night. Pursuant to *Carleton v. Superior Court* (1985) 170 Cal.App.3d 1182, 1192 ["to restrain a defendant reasonable force may be necessary to properly withdraw a blood sample from an actively resisting defendant"], if the arrestee actively resists the execution of this warrant, and if officers have notified the arrestee that a warrant for this procedure has been issued, they may use reasonable force to obtain the evidence.

Date: 11/01/2024 02:34:50 Judge of the Superior Court: *Judge Amy Sekany*

♦ AFFIDAVIT ♦

Name of affiant: SANTIAGO MEZA-GONZALES

Affiant's agency: CALIFORNIA HIGHWAY PATROL, DUBLIN

Date of arrest: 11/01/2024 **Time of arrest:** 01:12

I am a law enforcement officer employed by the above agency. On the above date and approximate time I arrested the above-named arrestee for the above Vehicle Code offense and the arrestee has remained in custody. The arrest was based on the following circumstances that were witnessed by me or, where indicated, were witnessed by another officer who informed me of the circumstance:

On 11/01/2024, at approximately 0055 hours, I was on patrol in full tan CHP uniform seated in the driver seat of a fully marked California highway Patrol (CHP) patrol vehicle (1633363) with my partner Officer Melano ID 23054, who was seated int the right front passenger seat of our patrol vehicle in the city of Livermore, county of Alameda. I observed a gray Tesla SUV parked on the right shoulder of I-580 eastbound, west of Isabel Avenue, and I proceeded to make a welfare check on the vehicle. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the male woke up. The male seemed very confused and disoriented. I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle through the open right passenger side door. I asked the male if he was okay, and he related yes. The male related he was on a parking lot, and I proceeded to informed him he

Warrant No:

Name of arrestee: NEWANFORBI, BRENDAN NGEHSI

Name of affiant: SANTIAGO MEZA-GONZALES

Affiant's agency: CALIFORNIA HIGHWAY PATROL, DUBLIN

was not in a parking lot, and he was on the side of the freeway. I asked the male how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the male if he had consumed any alcoholic beverages, and he related no. I asked the male to exit the Tesla. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Mr. Newanforbi a series of field sobriety test questions and while speaking with Mr. Newanforbi, I smelled the odor of an alcoholic beverage coming from Mr. Newanforbi's breath and person. I conducted a series of field sobriety tests on Mr. Newanforbi of which he did not perform as instructed or demonstrated. I arrested Mr. Newanforbi for 23152(a) VC - DUI at approximately 0112 hours. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Mr. Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Mr. Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Mr. Newanforbi chose to refuse any chemical testing.

Declaration: I declare under penalty of perjury that the foregoing is true.

Date: 11/01/2024 02:30:22 Affiant: SANTIAGO MEZA-GONZALES

Log # 64

Bay Area PL Services
(415) 300 - 4436
www.bayareapls.com

FRM-401.2 BLOOD TEST REQUEST FORM

SECTION [23500-23702]
CALIFORNIA VEHICLE CODE (CVC)

TIME 02:03 CALL 02:18 ARRIVAL ___:___ DEPART.

REQUESTING COUNTY ☐ ALAMEDA ☐ CONTRA COSTA ☐ MARIN ☐ SAN FRANCISCO ☐ SAN MATEO ☐ SANTA CLARA

REQUESTING AGENCY DUBLIN CHP CASE NO RJ 68845

SUBJECT DEMOGRAPHIC INFORMATION

L: NEWANFORBI
LA F: BRENDAN NGEHSI
DOB: 09/16/1996
__ Date & Time: 11/01/2024 @
FI Tech: A.GHALEB
Witness:
M

DATE OF BIRTH (DOB): __ __ / __ __ / __ __ __ __ (M M / D D / Y Y Y Y)

ID VERIFIED [ ]

PHLEBOTOMIST NAME & CERT. NO

Specimens may only be collected by persons authorized by Section 23158 of the California Vehicle Code as a clinical laboratory Phlebotomist; a person who has been issued a "Certified Phlebotomy Technician" license pursuant to Section 1246 of the Business and Professions Code

FULL NAME: AZIZA GHALEB

CPT #: 02153315

SIGNATURE:

SPECIMEN COLLECTION INFORMATION

COLLECTION DATE: 11/01/2024 (M M / D D / Y Y Y Y)

TIME OF DRAW: 0238

LOCATION OF DRAW: DUBLIN CHP (FACILITY)

COMPLETION STATUS:

☐ PHLEBOTOMY FEE - *IMPLIED CONSENT OR SIGNATURE OBTAINED*

☑ PHLEBOTOMY FEE + WARRANT - *RECEIVED COPY OF WARRANT W/ JUDGE'S NAME*

☐ DRY RUN - NO BLOOD COLLECTED - *CASE/LOG NO, AGENCY INFO, NOTES REQUIRED*

☐ DRY RUN - DISPATCH CANCELED CALL - *CASE/LOG NO, AGENCY INFO, NOTES REQUIRED*

☐ OTHER: _____

BLOOD DRAW ATTEMPTS: [1]

NOTES, *IF ANY:*

SUBJECT STATEMENT BOX:

☐ N/A - IMPLIED CONSENT *per VC § 23612(a)(1)(A)*

I, person subject listed above, do hereby consent and acknowledge the withdrawal of a blood sample from my body for selected blood tests. I also acknowledge that I have the right of refusal to submit the withdrawal of my blood but in doing so, there are additional penalties, consequences, and charges of my refusal and will be used against me in the court of law. I further certify that I am not a person who is afflicted with hemophilia, or afflicted with a heart condition, and/or taking an anticoagulant under supervision of a physician.

x

SIGNATURE REQUIRED FOR SF COUNTY. IF REFUSED, WARRANT IS REQUIRED.

CHARGE(S): 23152(a)VC

REQUESTING PEACE OFFICER NAME & BADGE NO: MEZA 23795

SIGNATURE OF OFFICER: x

OFFICER REQUEST ☑ THE APPROPRIATE BOXES AND INITIAL NEXT TO EACH BOX

S.M 1. The above listed person from whom the blood sample is to be obtained has been lawfully arrested for an offense allegedly committed in violation of Vehicle Code Section 23152 or 23153.

☐ 2. I believe that above listed person from whom the blood sample is to be obtained is in a condition rendering him/her incapable of refusal and is deemed not to have withdrawn his/her consent.

☐ 3. The above listed person from whom the blood sample is to be obtained is unconscious OR _____

S.M 4. There is a probable cause to believe that a test of the suspect's blood will yield relevant evidence in a criminal investigation.

☐ 5. The above listed person from whom the blood sample is to be obtained is a minor, and, according to California Attorney General, no parental consent is necessary to test a minor *(see 54 Ops.Cal. Atty.Gen.)*

S.M 6. The above listed person from whom the blood sample is to be obtained refuses to consent for a blood draw. (ATTACH COPY OF SIGNED WARRANT)

PHLEBOTOMY CHECKLIST *INITIAL THE APPROPRIATE ITEMS 1-13*

PHLEBOTOMIST INITIALS | PEACE OFFICER INITIALS

1. Phlebotomist uses sealed collection kit supplied by the Forensic Laboratory. The Evidence Kit contains all of the following:

- One county-specific evidence envelope and additional forms, *if applicable*
- Bio-hazard specimen bag, tourniquet, sterile gauze, bandage, and bib
- One sealed 21G or 23G butterfly needle and hub
- Two vacutainer labels
- Tamper evident seal(s)
- One disinfectant prep pad *(circle one)*: BZK *or* POVIDONE IODINE
  LOT#: _____ EXP: ____/____ (Y Y Y Y / M M)
- Two gray top vacutainer tubes with sodium fluoride and potassium oxalate powder pre
  LOT#: _____ EXP: ____/____/____ (Y Y Y Y / M M / D D)

BZK LOT # 57209
BZK LOT EXP 2028/10/17
VAC LOT # 4011446
VAC LOT EXP 2026/01/31

AG S.M

AG 2. **WARRANT ISSUED:** If the subject did not give consent or it is a forced draw, do not proceed or touch the subject until a warrant is received.
JUDGE'S FULL NAME: Amy Sekany *or* ☐ *N/A* - warrant not required; IMPLIED consent or signature above. S.M

AG 3. Phlebotomist sanitizes workstation area(s) with BZK cleaning agent; allows to air dry. Disinfects hands with BZK soap, allows to air dry and dons gloves. Applies tourniquet, palpates suitable vein, ensures absence of pulse, and prepares venipuncture site with county-approved disinfectant prep pad. CAUTION: alcohol prep pads and hand sanitizer is strictly prohibited! S.M

AG 4. Phlebotomist performs the venipuncture in *LEFT / RIGHT* AC. Establishes blood flow, confirming that the blood is venous and dark in color, and Phlebotomist asks 'TIME CHECK' from the Peace Officer. Collection date/time is notated from TIME CHECK. S.M

AG 5. Phlebotomist fills both tubes completely with blood, ensuring to immediately invert the tubes 8-10 times to mix the preservative and anticoagulant. Once both tubes are filled to maximum capacity, ensures to the remove the tourniquet within 1 minute of application. S.M

AG 6. Phlebotomist removes the final tube before withdrawing needle from the vein. Phlebotomist removes the needle from the subjects arm using a swift backward motion. While withdrawing the needle from the subjects skin, engages the safety mechanism, and presses down on the gauze over the puncture site with adequate pressure to avoid hematoma formation or asks competent subject to apply direct pressure over site keeping arm straight. S.M

AG 7. Phlebotomist assures that puncture site bleeding has stopped, applies band-aid or a piece of tape with gauze. Phlebotomist ensures the tubes are properly mixed with the preservative and anticoagulant and may invert again, if needed. S.M

AG 8. Phlebotomist fills out both vacutainer labels, at a minimum, the subject's full name, collection date, collection time, collector's initials, and gives labels to Witnessing Officer to add their initials. S.M

AG 9. Phlebotomist and Witnessing Officer compare label information matches evidence envelope and Blood Test Request Form to ensure accuracy of all information. After the accuracy of the labels is verified, they are affixed to the tubes by the Phlebotomist or Officer (depending on county protocol), ensuring to not cover the lot number and expiration date of the tubes. S.M

AG 10. Phlebotomist and Peace Officer complete the required information in their respective sections on the evidence envelope and Blood Test Request Form. Ensure all information is consistent, legible, and accurate. S.M

AG 11. Phlebotomist or Officer *(depending on county protocol)*, places the labeled blood test tubes into the evidence envelope and seals the envelope using the tamper-evident tape. Initials and date must be written across the seal and envelope itself. S.M

AG 12. All persons handling the evidence must make an entry on the chain of possession portion of the envelope with full name and date. The Phlebotomist transfers custody of the evidence envelope to the Peace Officer who will then annotate their name and date of receipt in the chain of possession section. After this point, the Phlebotomist is not allowed to handle the evidence envelope or re-open it for any reason. S.M

AG 13. Phlebotomist must perform infection control by wiping down workstation including, tables, chairs, floor mats, equipment, and frequently touched surfaces with BZK cleaning agent; allows to air dry completely. Properly dispose of all sharps in sharps containers and waste in appropriate receptacles. S.M

PHLEBOTOMIST USE ONLY
AIRTABLE LOG SUBMITTED? ☐

White - Police Agency | Yellow - Phlebotomist | Pink - Crime Lab *N/A San Francisco/Marin County*

ALAMEDA COUNTY SHERIFF'S DEPARTMENT
PRISONER PROPERTY RECEIPT

No. 2173094

Local Agency: OPD ☐ Other: _____

Local Agency No: _____

Inmates Last Name	First	M.I.
PFN No.	Date	Property Release # 1 / Property Release # 2

Cash Count			# 1	# 2
	X 100			
	X 50			
	X 20			
	X 10			
	X 5			
	X 1			
	COIN			
TOTAL		$		

This form contains a complete list of property receipted for upon entering an Alameda County Jail.

Inmate's Sig. X	☐ Refused to Sign
Officer's Sig. X	Badge No.

No. 2173094

I have received all of my property, clothing, and money.

Inmate's Sig. X	Date
Officer's Sig. X	Badge No.

Property Release #1

Released Property To:

Agency:

Checked and Received By	Badge No.	Date
Officer's Sig. X		
Inmate's Sig. X		Release Date
Officer's Sig. X		Badge/I.D. No.

Property Release #2

Released Property To:

Agency:

Checked and Received By	Badge No.	Date
Officer's Sig. X		
Inmate's Sig. X		Release Date
Officer's Sig. X		Badge/I.D. No.

Form 230-1

All unclaimed property and money shall be disposed of as provided by law.		PR # 1	PR # 2
Item	Description		
Wallet			
Purse			
Misc. Papers			
Check / Savings Book			
Keys			
Watch ☐ WM ☐ YM	☐ Man's ☐ Women's Make:		
Ring ☐ WM ☐ YM	☐ Man's ☐ Women's Color of Stone		
Ring ☐ WM ☐ YM	☐ Man's ☐ Women's Color of Stone		
Other Jewelry ☐ WM ☐ YM	☐ Man's ☐ Women's		
Other Jewelry ☐ WM ☐ YM	☐ Man's ☐ Women's		
Earring ☐ WM ☐ YM			
Change: If less than $1.00			
Rare or Foreign Coins			
Hat			
Coat			
Vest			
Shirt	BLACK		
Tie			
Belt			
Pants	PFN		
Shoes	BLACK		
Dress			
Skirt			
Radio			
Luggage			
Medication			
Other			
Comments:			

AGO 000051

Original - Inmate Yellow - County Jail Copy Pink - County Jail Copy Goldenrod - Originating Agency Copy

Arrest File #: 202400898 **Arrest Type:** M Misdemeanor **Status:** I Incomplete **Status Date:** 11/01/2

Felny/Mis #: 202400898 **Beat:** 052 I-580

Arrest Date : 11/01/2024 **Time :** 0112 **Officer ID:** 023295 Santiago Meza-gonzale

Citation # : RJ68845 **Arrest Loc :** I-580 EB WO ISABEL ON RHS **County :** Alameda

Evidence# : **Coll Log # :** **MVARS:** N **Release Status:**

First Name : BRENDAN **Middle Name:** NGEHSI **Last Name:** NEWANFORBI **Gen:**

Person/Vehicle

Address: 1455 CAT TAIL DR
City : STOCKTON **State:** CA **Zip:** 95204 **Country:** US United States

Race : B Black **Sex:** M **Eye:** BRN **Hair:** BLK
Weight : 225 **Height:** 5-08
DOB : 09/16/1996 **Age:** 28 **SSN:**

Driver Lic#: F7953179 **Driver ST:** CA

Veh. Lic# : 9EAX768 **Veh. ST :** CA **VIN:** **Veh. Type:** 01
Veh. Make : Tesla
Veh. Model : Model Y
Veh. Year : 2023
Veh. Color : GRY

Charges

Court : 01435 East County - Dublin
Booking # : CAR913358
Where Booked: Santa Rita Jail
DUI Cost : N **Juvenile:** N **SSP:** N

Agency Number

Code	Section Number	Type
VC	23152(a)	M

Test Results

PAS Device :
Pas Refused: Y

PAS Results

CHP 202 DRE:
Trombetta Advised:

Test#	Type	Drug Test	Result	Received	Rf	Tr	NC

Disposition

Case Status:
Status Date:
Filing Date:
Due Date :

Docket # :

Status Date	Status

DUI Cost

Date 735 Received :
Date To Accounting:

Officer ID	Officer Last Name	Activity Code	Activity Description	Hours

MVARS

DVD Item Number	DVD Date	Status	Status Date

Aliases

First Name	Middle Name	Last Name	Gen

Victims / Witnesses

Role	First Name	Middle Name	Last Name	Gen

Status Change History

		-Status-		-----Status Date------	
Date Changed	User ID	Old	New	Old	New
11/01/2024 04:59:27	023295		I		11/01/2024

Comments

10/31/2024 Regular Shift Info for 023295

Name	Supervisor	Shift Start	Shift Length	Partner	Beat	Review Area	Shift Area
Meza-Gonzales, Santiago	018449	1930	10	023054	068	390	390

Schedule	Weapon Checked	License Plate	Assigned Taser	Assigned PAS	Assigned MVARS	CHP415ID
Graveyard	No	1633363	13			16441963

Shift Times, Totals, OT, and Premium Pay Info

FLSA (10/07-11/03)	Patrol	Reg. Activity	OT Activity (Non-Reimbursable OT)	Reg Miles	Total SPC Miles
166.00/170	01:10 (01:10)	08:50	00:00 (00:00)	169	0

Premium Pay	FTO	OIC	AMR	Bus. Call	CTO/Stand By	CTO	Stand By
				No			

Enforcement Focus (Section G) Totals	PCF	Speed		
	1	2		

Activities for Day

Start	Elapsed	Beat	Activity	2nd Act.	SPC	Location	Activity Comment
19:30	00:45	909	Briefing/Debriefing	PV Svcs.		OFFICE	BRIEFING / PV CHECK
20:20	00:30	051	215 Moving			WB 580 TO 680	21651(a) VC
20:55	00:05	067	PA			NB 680 FROM BERNAL	
21:00	00:10	068	CFS – 23103 or 2…			NB 680 FROM 580 TO EL CERRO	UTL ON BOLO
21:15	00:10	068	ADV			NB 680 SO CROW CANYON	8FQF000 , UNK MECH
21:30	00:20	069	PA			680 SB SO SYCAMORE VALLEY	
21:50	00:15	068	215 Moving			SB 680 SO CROW CANYON	22349(a) VC
22:10	00:20	051	PA	215NR		EB 580 WO FOOTHILL	OWNER'S RESPONSIBILITY, 4000(a)(1) VC
22:30	00:15	900	PV Svcs.			OFFICE	PV REFUEL
22:55	00:20	052	PA	215NR		580 WB WO FIRST	FOR EXP REG AND NO INSURANCE 27: Y6464080
23:20	00:20	051	215 Moving			WB 580 WO SANTA RITA	22349(A) VC
23:55	00:20	052	PA			580 WB WO N. LIVERMORE	
00:20	00:15	068	PA			NB 680 SO ALCOSTA	
00:55	02:35	052	202			EB 580 WO ISABEL	23152(a) VC
03:30	00:10	900	PV Svcs.			OFFICE	PV REFUEL
03:40	00:30	053	CFS – Disabled			WB 580 EO GRANT LINE	11-26, GOA
04:30	00:45	900	202 T			OFFICE	FACE PAGES/ AIS
05:15	00:45	900	PV Svcs.	Briefing/Debriefing		OFFICE	PV BREAK DOWN AND DEBRIEF

Officer and Reviewer Comments

Community Engagement	Services
No community engagement comments left	No service comments left
Activity	**Miscellaneous Notes**
10-15 THAT WAS REFUSAL, WROTE BLOOD WARRANT. WROTE 5 TAGS AND FINSHED DUI FACE PAGES AT THE END OF SHIFT. WROTE 5 TAGS 3 OF WHICH WERE MOVERS.	DRIVER

Reviewer Comments

No reviewer comments were left for this shift.

415 Actions

Initiated	Last Modified	Last Submitted	Last Returned	Last Approved	Finalized
10/31/2024 20:08:18, 023295	03/25/2025 14:41:43, DOJ-AP	11/01/2024 06:14:05, 023295	n/a	11/01/2024 13:10:00, 020592	03/25/2025 14:41:43, DOJ-AP

Current Status	Inactivated	Tag Number	Version Number	Run Date
Finalized	n/a	PV1633363	v.3.0.31287	05/10/2026 17:14:33.5255

10/31/2024 Regular Shift Info for 023054

Name	Supervisor	Shift Start	Shift Length	Partner	Beat	Review Area	Shift Area
MELANO, J.	018217	1930	10	023295	068	390	390

Schedule	Weapon Checked	License Plate	Assigned Taser	Assigned PAS	Assigned MVARS	CHP415ID
Graveyard	No	1633363	3	3	WMVARS	16441961

Shift Times, Totals, OT, and Premium Pay Info

FLSA (10/07-11/03)	Patrol	Reg. Activity	OT Activity (Non-Reimbursable OT)	Reg Miles	Total SPC Miles
168.00/170	01:10 (01:10)	08:50	00:00 (00:00)	0	0

Premium Pay	FTO	OIC	AMR	Bus. Call	CTO/Stand By	CTO	Stand By
				No			

Enforcement Focus (Section G) Totals	Speed
	4

Activities for Day

Start	Elapsed	Beat	Activity	2nd Act.	SPC	Location	Activity Comment
19:30	00:45	900	Briefing/Debriefing	PV Svcs.		OFFICE	BRIEFING AND PV SET UP
20:20	00:30	051	PA			WB 580 TO 680	
20:55	00:05	067	MS			NB 680 FROM BERNAL	74908C2, UNK MECH
21:00	00:10	068	PA			NB 680 FROM 580 TO EL CERRO	
21:15	00:10	068	PA			NB 680 SO CROW CANYON	
21:30	00:20	069	215 Moving			680 SB SO SYCAMORE VALLEY	27: Y4497412 FOR SPEED
21:50	00:15	068	PA			SB 680 SO CROW CANYON	
22:10	00:20	051	215 Moving			EB 580 WO FOOTHILL	22349(a) VC
22:30	00:15	900	PV Svcs.			OFFICE	PV REFUEL
22:55	00:20	051	215 Moving			EB 580 EO FIRST ST	22349(a) VC
23:20	00:20	051	PA			WB 580 WO SANTA RITA	
23:55	00:20	052	215 Moving			580 WB WO N. LIVERMORE	27: W9171145 FOR SPEED
00:20	00:15	068	VW Equipment			NB 680 SO ALCOSTA	Y6363697, 5200(a) VC
00:55	02:35	052	PA	180		EB 580 WO ISABEL	22651(h)(1) VC
03:30	00:10	900	PV Svcs.			OFFICE	PV REFUEL
03:40	00:30	053	PA T			WB 580 EO GRANT LINE	
04:30	00:45	900	555I T			OFFICE	KRAFT FACTUAL
05:15	00:45	900	PV Svcs.	Briefing/Debriefing		OFFICE	PV BREAK DOWN AND DEBRIEF

Officer and Reviewer Comments

Community Engagement	Services
No community engagement comments left	No service comments left
Activity	**Miscellaneous Notes**
PARTNER HAD 10-15 THAT WAS REFUSAL AND WROTE BLOOD WARRANT.	No comments left

Reviewer Comments

No reviewer comments were left for this shift.

415 Actions

Initiated	Last Modified	Last Submitted	Last Returned	Last Approved	Finalized
10/31/2024 20:19:25, 023054	03/25/2025 14:41:05, DOJ-AP	11/01/2024 05:58:34, 023054	n/a	11/01/2024 13:06:57, 020592	03/25/2025 14:41:05, DOJ-AP

Current Status	Inactivated	Tag Number	Version Number	Run Date
Finalized	n/a	TAB224731	v.3.0.31287	05/12/2026 10:09:02.1891

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Attorneys for Respondent
California Highway Patrol

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, **v.** **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26CV191136 **PRIVILEGE LOG IN SUPPORT OF RESPONDENT CALIFORNIA HIGHWAY PATROL'S RESPONSES TO PETITIONER'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE** Dept: 25 Judge: The Honorable Jenna M. Whitman Action Filed: May 29, 2026

No.	Document Title	Bates Range	Privilege(s) Asserted
1	CHP 240 (Complaint Inquiry/Investigation)	AGO 000001 to AGO 000002	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
2	Civilians' Complaint Investigation, 390-26-002	AGO 000003 to AGO 000009	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040).
3	Intake and Disposition Bureau Complaint Correspondence	AGO 000010–AGO 000016	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
4	POST email acknowledgment of public complaint	AGO 000017	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
5	Letter from CHP to Brendan N. Newanforbi, dated March 26, 2026	AGO 000018	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
6	POST letter to Brendan Newanforbi, dated March 23, 2026	AGO 000019	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
7	Agency Notification of Public Complaint - PUBLIC-26-000371	AGO 000020 to AGO 000021	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
8	POST complainant's statement	AGO 000026–AGO 000028	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
9	May 9, 2026 Memorandum: Review of Wireless Mobile Video/Audio Recording System Video	AGO000055–AGO 000057	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040).
10	May 9, 2026 Memorandum: Interview with Officer Santiago Meza-Gonzales	AGO 000058–AGO 000060	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process

			privilege; official information privilege (Evid. Code § 1040).
11	CHP 240B, Civilians' Complaint Information	AGO 000062–AGO 000063	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040).
12	May 20, 2026, Interview with Officer Jose Melano	AGO 000064–AGO 000065	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5); deliberative process privilege; official information privilege (Evid. Code § 1040).
13	August 18, 2026 Letter from CHP to Brendan N. Newanforbi	AGO 000066	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
14	March 26, 2026 Letter from CHP to Brendan N. Newanforbi	AGO 000067	Pen. Code § 832.7 (records maintained by a state agency pursuant to Pen. Code § 832.5).
15	Return for query sent to CLETS	AGO 000068 to AGO 000072	Pen. Code §§ 11140, 11142 (prohibiting disclosure of records maintained pursuant to Pen. Code § 11105).

Dated: October 23, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ Vanessa Ing
VANESSA K. ING
Deputy Attorney General
Attorneys for Respondent
California Highway Patrol

DECLARATION OF SERVICE BY E-MAIL

Case Name: *Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.*
Case Number: 26CV191136
Party Represented: California Highway Patrol, et al.

Declaration of Electronic Service

1. I am at least 18 years of age and not a party to this matter.

2. I am employed in the Office of the Attorney General of the State of California. My business address is 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004, County of San Francisco.

3. My electronic service address is Huihong.Su@doj.ca.gov.

4. On October 23, 2026, I electronically served the following document[s]:

   a. **RESPONDENT'S PRODUCTION OF FOUR DASHCAM VIDEO RECORDINGS (WITH COVERSHEET)**
   b. **PRODUCTION DOCUMENTS - AGO 000022-000024**
   c. **PRODUCTION DOCUMENTS - AGO 000025**
   d. **PRODUCTION DOCUMENTS - AGO 000029-000053**
   e. **PRODUCTION DOCUMENTS - AGO 000054**
   f. **PRODUCTION DOCUMENTS - AGO 000061**
   g. **PRIVILEGE LOG IN SUPPORT OF RESPONDENT CALIFORNIA HIGHWAY PATROL'S RESPONSES TO PETITIONER'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE**

5. I electronically served the aforementioned documents by transmitting a true copy via FileXchange download link, addressed as follows::

Brendan Ngehsi Newanforbi
E-mail Address:
bnn.cdl@gmail.com

Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct, and that this declaration was executed on October 23, 2026.

H. Su	*/s/ H. Su*
Declarant	Signature

SA2026303341
45409529.docx

TRANSCRIPT OF CALIFORNIA HIGHWAY PATROL DASHCAM VIDEO AND AUDIO RECORDING

Incident Date: November 1, 2024

Location: Interstate 580 East, Livermore, Alameda County, California

CHP Case Number: RJ68845

Recording Duration: 00:54:36 – 01:57:10

CERTIFICATE OF ACCURACY

I, Brendan Ngehsi Newanforbi, hereby certify that the following transcript is a true and accurate transcription of the audio and video recording captured by the California Highway Patrol dashcam during the incident of November 1, 2024. Timestamps are synchronized with the original recording. Speaker identifications are based on visual and audio identification from the recording.

LEGEND:

Meza-Gonzalez: CHP Officer Santiago Meza-Gonzalez (Badge #023295)

Melano: CHP Officer Jose Melano (Badge #023054)

Plaintiff: Brendan Ngehsi Newanforbi

Dispatch: CHP Radio Dispatch

[Bracketed text]: Actions, observations, or non-verbal events visible on recording

VERBATIM TRANSCRIPT

I. INITIAL APPROACH AND VEHICLE CONTACT (00:54:36 – 00:56:45)

00:54:36 — [CHP vehicle heading eastbound on I-580.]

00:55:25 — [CHP vehicle begins to pull over onto shoulder and behind the Tesla.]

00:55:37 — [CHP vehicle comes to a full and complete stop; audio recording activates.]

00:55:53 — **Melano:** "It's a rental. Huh."

00:55:57 — [Both officers exit CHP vehicle and walk toward Tesla on dirt shoulder, passenger side. Both have flashlights in hand.]

00:56:00 — [Meza-Gonzalez lifts left arm with flashlight (light on) and points it at Plaintiff's vehicle, passenger side.]

00:56:05 — [Both officers are now peering into Plaintiff's windows with flashlights, appearing to search the interior.]

00:56:09 — **Melano:** "I think it's booze."

00:56:07 — [Officers continue peering into vehicle. Meza-Gonzalez begins knocking on front passenger side window.]

00:56:07 — **Melano:** "It wasn't here earlier when we passed by."

00:56:30 — **Melano:** "Oh look at this."

00:56:30 — [Meza-Gonzalez continues knocking on window to wake Plaintiff.]

00:56:40 — **Melano:** "Open the window."

00:56:43 — [Passenger side door is opened by Officer Joselyn Melano.]

00:56:46 — **Melano:** "Hello."

00:56:46 — **Plaintiff:** "Uh-huh."

00:56:47 — **Melano:** "Are you okay?"

00:56:48 — **Plaintiff:** "Yeah, we good."

00:56:49 — **Melano:** "Why are you here? Just tired?"

00:56:50 — [Plaintiff repeatedly says "no."]

00:56:52 — **Melano:** "What do you mean?"

00:56:54 — [Plaintiff repeatedly says "no."]

00:56:58 — **Plaintiff:** "We're good. We good, we good. Yeah we're straight."

00:57:05 — **Melano:** "OK. Where were you coming from?"

00:57:11 — **Plaintiff:** "We're coming from uh, uh, a party."

II. CUP INSPECTION AND DETERMINATION (00:57:30 – 00:59:12)

00:57:35 — **Melano:** "OK. How long have you been here for?"

00:57:30 — **Plaintiff:** "I've been here at this place right here for, since a little after midnight."

00:57:39 — **Meza-Gonzalez:** "No, I mean like how long have you been parked here on the side of the road?"

00:57:43 — **Plaintiff:** "Oh parked at this parking lot right here?"

00:57:46 — **Meza-Gonzalez:** "This is not a parking lot."

00:57:49 — **Plaintiff:** "Two... two o'clock."

00:57:49 — [Plaintiff still groggy from sleep.]

00:57:51 — **Meza-Gonzalez:** "No, right there it says twelve fifty-seven a.m. on the dash. You see it says 12:57 a.m.?"

00:57:58 — **Plaintiff:** "Yeah I should be home by like 1:30."

00:58:01 — **Meza-Gonzalez:** "I understand. But um how long have you been here on the side of the road for?"

00:58:06 — **Plaintiff:** "Oh uh like 5-7 minutes."

00:58:07 — **Meza-Gonzalez:** "5-7 minutes? Okay. And you were at this party alone?"

00:58:13 — **Meza-Gonzalez:** "Like, I know but, you were driving? That was what I meant to ask you."

00:58:30 — **Meza-Gonzalez:** "How much have you had to drink at the party? You said it was like 2 hours ago?"

00:58:36 — **Plaintiff:** "Zero."

00:58:37 — **Meza-Gonzalez:** "You haven't had anything?"

00:58:38 — **Plaintiff:** "No, no."

00:58:34 — **Meza-Gonzalez:** "Okay. What's in that cup right there?"

00:58:46 — **Plaintiff:** "Don't drink it. Yeah don't drink it."

00:58:49 — **Melano:** "What is it? Let me see."

00:58:51 — **Melano:** "Is it water? No this is piss. This is pee."

00:58:57 — **Plaintiff:** "I don't know what that is."

00:58:59 — **Melano:** "I'm telling you it's piss. It smells like piss."

00:58:59 — [Melano has liquid cup in hand and motions it. Meza-Gonzalez leans back.]

00:59:02 — **Meza-Gonzalez:** "No I'm not gonna smell that."

00:59:04 — **Melano:** "Yeah, I'm telling you it's piss."

00:59:05 — **Plaintiff:** "Oh, OK."

00:59:07 — **Melano:** "OK. Leave it there. Put it back."

00:59:12 — **Meza-Gonzalez:** "Could I just have you uh just step out of your vehicle real quick?"

III. PLAINTIFF EXITS VEHICLE AND IDENTIFICATION (00:59:25 – 01:01:16)

00:59:20 — [Plaintiff crosses over from passenger side to driver side at Meza-Gonzalez's command.]

00:59:25 — **Meza-Gonzalez:** "And then uh just hop out of your vehicle."

00:59:27 — **Melano:** "Where's your ID at?"

00:59:31 — **Meza-Gonzalez:** "Do you have any ID on you at all? Is it on your pants?"

00:59:34 — **Melano:** "Yeah he said it's in his pocket bro."

00:59:36 — **Meza-Gonzalez:** "Pocket? OK."

00:59:38 — **Meza-Gonzalez:** "What's your first name?"

00:59:39 — **Plaintiff:** "Brendan, sir."

00:59:40 — **Meza-Gonzalez:** "Brendan? OK. Alright Brendan, just meet me right next to my car, OK?"

00:59:38 — [Plaintiff calmly complying with commands, walking toward CHP vehicle in a manner consistent with no signs of impairment.]

00:59:46 — **Meza-Gonzalez:** "What's your last name?"

00:59:47 — **Plaintiff:** "Newanforbi."

00:59:50 — **Meza-Gonzalez:** "What's your last name?"

00:59:51 — **Plaintiff:** "Newanforbi."

00:59:53 — **Meza-Gonzalez:** "You could — you could stand here."

00:59:53 — [Meza-Gonzalez motions Plaintiff to stand next to CHP vehicle.]

00:59:55 — **Meza-Gonzalez:** "So you said your last name was what?"

00:59:57 — **Plaintiff:** "NEW-WAN-FOR-BI."

01:00:00 — **Meza-Gonzalez:** "Newanforbi?"

01:00:01 — **Plaintiff:** "Yes."

00:59:46 — [Melano can be seen opening rear or backseat passenger door and conducting a search while Plaintiff is being escorted by Meza-Gonzalez.]

01:00:02 — **Meza-Gonzalez:** "OK."

01:00:04 — **Meza-Gonzalez:** "Can I see your ID please?"

01:00:06 — **Melano:** "Meza?"

01:00:06 — [Melano calls Meza-Gonzalez's attention, then walks over with an empty can in hand.]

01:00:07 — **Meza-Gonzalez:** "Did you drink that?"

01:00:08 — **Plaintiff:** "No."

01:00:09 — **Melano:** "Mike's Hard Lemonade. Source alcohol."

01:00:09 — **Meza-Gonzalez:** "No? You didn't drink that?"

01:00:09 — [Plaintiff nods 'no.']

01:00:11 — **Meza-Gonzalez:** "You haven't drank anything since you've been parked?"

01:00:14 — **Plaintiff:** "No."

01:00:15 — **Meza-Gonzalez:** "OK. Can I see your ID? Your ID real quick?"

01:00:17 — [Plaintiff calmly presents ID to Meza-Gonzalez.]

01:00:19 — **Meza-Gonzalez:** "Alright sir, thank you."

01:00:21 — **Meza-Gonzalez:** "Brendan Newanforbi."

01:00:21 — [Officer reading the ID.]

01:00:22 — [Plaintiff quietly nods head yes.]

01:00:24 — **Meza-Gonzalez:** "Uh, do you still live on Cat Tail?"

01:00:26 — [Plaintiff nods head and says yes.]

01:00:28 — **Meza-Gonzalez:** "You said you've been here for seven minutes. Uh, you drove home from a party. When was the party at?"

01:00:34 — **Plaintiff:** "It wasn't all the way in Oakland."

01:00:37 — **Meza-Gonzalez:** "Oakland? Oh and you're going back home to Stockton?"

01:00:39 — **Plaintiff:** "Yes."

01:00:40 — **Meza-Gonzalez:** "You know where you're at right now?"

01:00:41 — **Plaintiff:** "Right now, Livermore."

01:00:43 — **Meza-Gonzalez:** "You are in Livermore."

01:00:44 — [Plaintiff proceeds to read a highway sign about 50 yards away.]

01:00:44 — **Plaintiff:** "Isabella Avenue, Portola Avenue, ___ Avenue."

01:00:46 — **Meza-Gonzalez:** "Correct."

01:00:50 — **Meza-Gonzalez:** "Correct. And you haven't had any alcohol since you've been parked here?"

01:00:53 — **Plaintiff:** "No sir."

01:00:54 — **Meza-Gonzalez:** "Did you have any alcohol at the party?"

01:00:56 — **Plaintiff:** "No."

01:00:57 — **Meza-Gonzalez:** "No? OK."

01:00:57 — [Meza-Gonzalez reaches into shirt pocket, pulls out two notebooks and a pen. Flips open a page and continues questioning.]

01:01:16 — **Meza-Gonzalez:** "So why was the reason that you stopped on the side of the road? You just felt tired?"

IV. PRE-FST QUESTIONING (01:01:21 – 01:05:07)

01:01:21 — **Plaintiff:** "You know I'm a truck driver. So when I feel tired, when I feel fatigued, whenever I am unable to continue to drive that truck, I'm gonna pull over to the side of the road, try to get a nap. It's not often that I'm going to go into the exit. It's not often that I'm gonna do that because it's an immediate thing. How quickly can I move over to the side of the road, catch some shut-eye, wake up and continue on to finish the route? I adopt that same sort of mentality..."

01:01:55 — **Meza-Gonzalez:** "...when you're driving your personal vehicle?"

01:01:56 — **Plaintiff:** "...when I drive my personal vehicle."

01:01:58 — **Meza-Gonzalez:** "OK, is this your car though?"

01:01:59 — **Plaintiff:** "This is a rental."

01:02:02 — **Meza-Gonzalez:** "Do you know anything mechanically wrong with it or is it perfectly fine?"

01:02:06 — **Plaintiff:** "Uh, I don't know what could have been wrong with it. As far as I know, since I've only had it for what, less than a week."

01:02:15 — **Meza-Gonzalez:** "OK. Are you sick or injured?"

01:02:17 — **Plaintiff:** "Sorry?"

01:02:18 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:19 — [Plaintiff leans head toward the right to hear Meza-Gonzalez's question better.]

01:02:19 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:21 — **Plaintiff:** "Am I sick or injured physically? No."

01:02:26 — **Meza-Gonzalez:** "OK. Are you diabetic or epileptic?"

01:02:28 — **Plaintiff:** "I have — I have been diagnosed with pre-diabetes."

01:02:31 — **Meza-Gonzalez:** "Pre-diabetes? OK. And do you take insulin?"

01:02:34 — **Plaintiff:** "No sir, no sir. I don't take any insulin to treat the pre-diabetes."

01:02:41 — **Meza-Gonzalez:** "OK. So you don't have any physical impairments?"

01:02:48 — **Plaintiff:** "Besides the pre-diabetes and the uh..."

01:02:51 — **Meza-Gonzalez:** "Can I have you spit out whatever is in your mouth?"

01:02:51 — [Meza-Gonzalez motions with circular motion, points at his mouth.]

01:02:53 — **Plaintiff:** "Oh I'm sorry, that's — that's just like spit."

01:02:53 — [Plaintiff leaning downward and away from Meza-Gonzalez.]

01:02:54 — **Meza-Gonzalez:** "Is it seeds or what is it?"

01:03:01 — **Plaintiff:** "That's a hotdog, from the hotdog stand."

01:03:05 — **Meza-Gonzalez:** "Oh OK. I just wasn't sure what you were chewing on. That's why I wanted you to spit it out."

01:03:09 — **Plaintiff:** "Sorry."

01:03:10 — **Meza-Gonzalez:** "It's fine. Alright, um when was the last time you slept? 'Cause I know that we've got you sleeping right here. How long would you say you slept for, maybe like, you got like

5 minutes of shut-eye right now?"

01:03:19 — **Plaintiff:** "Yeah like only been 7, yeah."

01:03:28 — **Meza-Gonzalez:** "OK. And what did you last eat? You said a hotdog?"

01:03:31 — **Plaintiff:** "Yeah."

01:03:32 — **Meza-Gonzalez:** "What time did you have the hotdog?"

01:03:34 — **Plaintiff:** "What time is it now sir?"

01:03:35 — **Meza-Gonzalez:** "Uh right now it's 1 AM."

01:03:42 — **Plaintiff:** "Maybe like 11:30."

01:03:47 — **Meza-Gonzalez:** "And you were driving correct? The car, the Tesla?"

01:03:50 — **Plaintiff:** "I was in the driver's seat, yes sir."

01:03:53 — **Meza-Gonzalez:** "OK, but you were driving? 'Cause you said you came from a party in Oakland?"

01:03:57 — **Plaintiff:** "Oakland, yes."

01:03:59 — **Meza-Gonzalez:** "OK. Um, you started driving from Oakland, you're going to Stockton, and you said you know that you're in Livermore right?"

01:03:59 — [Meza-Gonzalez making hand motions.]

01:04:07 — **Plaintiff:** "Yeah, I'm aware of that."

01:04:12 — **Meza-Gonzalez:** "What you said you haven't been drinking anything at all? No alcohol? OK."

01:04:14 — **Plaintiff:** "No sir."

01:04:18 — **Meza-Gonzalez:** "Have you bumped your head recently? Like at all?"

01:04:21 — **Plaintiff:** "I'm not sure."

01:04:23 — **Meza-Gonzalez:** "OK."

01:04:29 — **Meza-Gonzalez:** "Are you under the care of a doctor or dentist?"

01:04:33 — **Plaintiff:** "If you ask me who my primary care doctor was, I wouldn't be able to tell you."

01:04:37 — **Meza-Gonzalez:** "That's fine. I was just — I just want to know if you're under the care of a doctor or dentist for something, like something, like an injury or something."

01:04:44 — **Plaintiff:** "Like I said, I have recently seen a doctor for high blood pressure."

01:04:51 — **Meza-Gonzalez:** "OK. Have you taken any medication or drugs?"

01:04:56 — **Plaintiff:** "No drugs or medicine."

01:05:00 — **Meza-Gonzalez:** "No? OK."

01:05:00 — [Meza-Gonzalez proceeds to command Plaintiff to come to his car.]

V. FIELD SOBRIETY TESTS (01:05:07 – 01:10:30)

01:05:07 — **Meza-Gonzalez:** "Alright, so what I'm gonna have you do is come off of my car, OK? I'm gonna have you put your feet together. Put your feet together for me. Put your hands down by your side, and then just remain like this until I tell you to do something else. Do you understand?"

01:05:21 — **Plaintiff:** "Yes sir."

01:05:22 — **Meza-Gonzalez:** "Alright. So what you're gonna do is you're gonna look at the tip of my finger with your eyes without moving your head. Do you understand?"

01:05:34 — **Meza-Gonzalez:** "Eyes test."

01:06:11 — **Meza-Gonzalez:** "Just continue looking at the tip of my finger, OK?"

01:06:54 — **Meza-Gonzalez:** "Alright, now come down to your nose, go around your face here. I'm not gonna touch you, OK?"

01:07:04 — **Meza-Gonzalez:** "OK."

01:07:04 — [Ends HGN test.]

01:07:05 — **Meza-Gonzalez:** "You can relax."

01:07:06 — **Meza-Gonzalez:** "What do you drive?"

01:07:12 — **Plaintiff:** "I drive a uh Tesla Model Y."

01:07:14 — **Melano:** "You need a jacket or anything?"

01:07:15 — **Meza-Gonzalez:** "I'm good."

01:07:17 — **Meza-Gonzalez:** "Uh, a Tesla Model Y?"

01:07:18 — **Plaintiff:** "A Tesla Model Y."

01:07:21 — **Meza-Gonzalez:** "So you don't drive a, you said you drive a truck right?"

01:07:33 — **Plaintiff:** "I do drive a semi truck for a living. I do have a Class A license."

01:07:34 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do, put your feet together, hands down by your side, OK? And then just remain like this until I tell you to do something different. Do you understand?"

01:07:41 — **Plaintiff:** "Understood."

01:07:42 — **Meza-Gonzalez:** "Alright, so when I tell you to do so, not now, what you're gonna do, when I tell you to, you're gonna tilt your head back alright, and then when I tell you to do so, close your eyes. Close your eyes OK? Once you believe that 30 seconds have passed by, you're gonna open your eyes, you're gonna look at me, and you're gonna tell me to stop. Do you understand?"

01:07:58 — **Plaintiff:** "Understood."

01:07:59 — **Meza-Gonzalez:** "OK, so tilt your head back and close your eyes."

01:08:02 — [Meza-Gonzalez starts timer.]

01:08:40 — [Plaintiff opens eyes and looks at Meza-Gonzalez, signaling for time to stop.]

01:08:41 — **Meza-Gonzalez:** "Stop?"

01:08:44 — [Plaintiff nods head yes.]

01:08:45 — [Meza-Gonzalez stops timer.]

01:08:53 — [Meza-Gonzalez pulls notebook out, clicks pen, takes notes.]

01:08:58 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do now is same thing. Keep your feet together, hands down by your side, and then just remain like this until I tell you to do something different, OK? What you're gonna do is you're gonna choose either leg of your choice, OK? You're gonna lift it off the ground OK? 1 thousand 1, 1 thousand 2, 1 thousand 3, OK?"

01:09:14 — **Plaintiff:** "Really?"

01:09:20 — **Meza-Gonzalez:** "Yeah. You want to do it? It's fine if you don't. You don't have to."

01:09:23 — **Plaintiff:** "Well I mean, you're giving me all these tests. It seems as though I'm passing them and then the level of difficulty just keeps increasing and increasing and increasing. I just wanna know if I've passed your test."

01:09:43 — **Melano:** "We have other tests you could do."

01:09:44 — **Meza-Gonzalez:** "Yeah there's other ones we could do."

01:09:46 — **Plaintiff:** "So I haven't passed any of your tests yet?"

01:09:49 — **Meza-Gonzalez:** "I'm not saying that you haven't passed them yet. I'm just having you do them first."

01:09:52 — **Melano:** "Yeah there's not pass or fail."

01:09:54 — **Plaintiff:** "They obviously are because if there were pass or fail, if they were pass then I would have..."

01:09:58 — **Meza-Gonzalez:** "I need to do all of them. I go through all of them regardless if it's a pass or what you think is a pass or fail."

01:10:10 — **Meza-Gonzalez:** "Alright?"

01:10:12 — **Plaintiff:** "I don't think I — I don't know if I can balance on one knee."

01:10:14 — **Meza-Gonzalez:** "OK, well for the next one I'm gonna have you walk in a straight line, imaginary line. You want to do that one yes or no?"

01:10:23 — **Plaintiff:** "I mean I think we can do that. I mean..."

01:10:25 — **Melano:** "It's kind of sketch here bro."

01:10:26 — **Meza-Gonzalez:** "Is it 'cause it's on the side of the freeway?"

01:10:27 — **Melano:** "Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one."

01:10:30 — **Meza-Gonzalez:** "Alright then."

VI. PAS TEST REQUEST AND ARREST (01:10:33 – 01:11:42)

01:10:33 — **Meza-Gonzalez:** "Alright, so then I'm gonna request you take a preliminary alcohol screening test for assisting me in determining whether you are under the influence of alcohol or not. You may refuse to take this test, however this is not an implied consent test and if you are arrested you will be required to give a sample of your blood or breath for the purpose of determining the alcoholic and drug content of your blood. Is that fine?"

01:10:51 — **Plaintiff:** "So you're saying that I am required or not required?"

01:10:54 — **Meza-Gonzalez:** "You're not required to do this. It'll assist me in determining whether you are under the influence of alcohol."

01:11:01 — **Plaintiff:** "And if I choose not to consent to it?"

01:11:03 — **Meza-Gonzalez:** "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not."

01:11:11 — [Meza-Gonzalez and Melano calibrating breathalyzer.]

01:11:13 — **Meza-Gonzalez:** "Yes or no?"

01:11:15 — **Plaintiff:** "I don't consent to that."

01:11:16 — **Meza-Gonzalez:** "OK. Brendan. Alright then. I'm gonna have you just turn around please. Place your hands behind your back."

01:11:31 — **Meza-Gonzalez:** "Place your hands behind your back."

01:11:33 — **Meza-Gonzalez:** "Separate your feet, point your toes out and don't move, okay?"

01:11:33 — [Meza-Gonzalez proceeds to place handcuffs on Plaintiff.]

01:11:36 — **Melano:** "Go ahead."

01:11:36 — [Melano radios dispatch.]

01:11:42 — **Dispatch:** "Uh so he is on parole for PC 289. He's also a 290 registrant. He's clear with San Joaquin and I'm gonna check Alameda."

VII. POST-ARREST PROCESSING (01:12:32 – 01:25:24)

01:12:32 — **Melano:** "He's on parole."

01:12:33 — **Meza-Gonzalez:** "You have the keys right?"

01:12:54 — **Meza-Gonzalez:** "I'm gonna just search you right now."

01:12:54 — [Meza-Gonzalez proceeds with pat down.]

01:13:01 — **Melano:** "You need a property bag or no?"

01:13:02 — **Meza-Gonzalez:** "I got a property bag."

01:13:05 — **Melano:** "OK, look you want me to hold it for you?"

01:13:05 — **Meza-Gonzalez:** "I don't have it on me though."

01:13:14 — [Meza-Gonzalez reaches into Plaintiff's left pant pocket. Search of person continues.]

01:13:31 — **Meza-Gonzalez:** "What's this ankle bracelet for?"

01:13:33 — **Plaintiff:** "Like you said, I am on parole."

01:13:35 — **Melano:** "Yeah."

01:13:38 — **Meza-Gonzalez:** "So you're on post-community supervision?"

01:13:42 — **Plaintiff:** "Uh I think there's a difference between PRCS—"

01:13:43 — **Melano:** "Yeah, there is."

01:13:46 — **Plaintiff:** "PRCS, parole, and uh what's the other one, probation."

01:14:30 — **Melano:** "Hey boss is there anything in the car that you want us to note on an inventory form that's really important of value that you want to take with you?"

01:14:33 — **Plaintiff:** "Not necessarily, I mean..."

01:14:34 — **Melano:** "Like do you want to take your phone with you or something?"

01:14:36 — **Plaintiff:** "Like my motor vehicle record, of course."

01:14:38 — **Melano:** "You want to take your phone with you?"

01:14:39 — **Plaintiff:** "Everybody would probably wanna take their phone."

01:14:42 — **Melano:** "Cool, so I'll grab your phone, anything else you want?"

01:14:49 — **Melano:** "Like phone, wallet, keys."

01:14:53 — **Plaintiff:** "You haven't seen anything else in there that's of value?"

01:14:56 — **Melano:** "No, I'll check. I haven't checked yet. I'm asking first."

01:14:59 — **Plaintiff:** "Phone, keys, wallet, paperwork."

01:15:06 — [Meza-Gonzalez escorts Plaintiff to passenger side of squad car and puts him in the back seat, cuffs still on. He attaches the handcuffs to the vehicle frame and then closes the door.]

01:15:54 — **Meza-Gonzalez:** "Alright so uh you have the option of a chemical breath test or a chemical blood test, which one would you like to do?"

01:16:04 — **Meza-Gonzalez:** "You won't do it right now but when we get to the jail which one would you prefer to do, chemical breath or chemical blood?"

01:16:19 — **Plaintiff:** "I don't know. It seems like torture."

01:16:37 — **Meza-Gonzalez:** "Well the thing is you need to make that decision now because if let's say you decide you don't wanna do either chemical breath or chemical blood, I will have to read you the back of a DMV sheet. I'll read you all the rules right for implied consent. Basically, what it breaks down to is if you don't choose a chemical breath or a chemical blood, the DMV will have to suspend your license."

01:16:59 — **Meza-Gonzalez:** "'Cause right now you're not refusing, you're just saying that basically you don't want to choose and I'm letting you know what's gonna happen."

01:17:11 — **Meza-Gonzalez:** "You wanna choose a chemical breath or blood?"

01:17:13 — **Plaintiff:** "And then I can't drive whatsoever?"

01:17:16 — **Meza-Gonzalez:** "I'll read you the back of the DMV sheet so that way you know everything OK? OK just watch your fingers."

01:17:16 — [Meza-Gonzalez closes passenger door, enters driver door.]

01:18:32 — [Meza-Gonzalez: "You got a 130?"]

01:18:34 — **Melano:** "Yeah I'm starting right now bro. I need to make sure there's no guns. He's on parole."

01:18:34 — [Melano continues searching vehicle.]

01:19:18 — [Meza-Gonzalez reads chemical test admonishment.]

01:20:49 — **Meza-Gonzalez:** "So that just broke it down detail by detail that basically if you refuse your driving privilege will be administratively suspended for one or three years by the DMV. Let's say you said you're sober right, you didn't drink anything whatsoever. Even if you still refuse to take a chemical breath or blood test, the DMV will administratively suspend your license for one year at least, and it could be up to three years."

01:21:17 — **Plaintiff:** "Well if that's what the DMV has to do then that's what the DMV has to do."

01:21:30 — **Meza-Gonzalez:** "So even though you know that you're gonna get suspended?"

01:21:33 — **Plaintiff:** "So you're saying the DMV will categorically suspend my license up to three years is what you're saying."

01:21:41 — **Plaintiff:** "Even as a truck commercial driver, that's what you're willing to do, force the DMV's hand?"

01:21:50 — **Meza-Gonzalez:** "I'm not forcing the DMV to do it, that's their rule."

01:21:52 — **Plaintiff:** "I get that."

01:21:54 — **Meza-Gonzalez:** "And all you have to do is take a chemical breath or chemical blood without refusing."

01:22:04 — **Plaintiff:** "With all due respect, by the power that's been vested upon you in the State of California..."

01:22:15 — **Meza-Gonzalez:** "So you're refusing to take a test?"

01:22:21 — **Meza-Gonzalez:** "OK."

01:23:11 — **Melano:** "Yeah we just have to write what time we last passed him here because he wasn't here earlier."

01:23:16 — **Meza-Gonzalez:** "But he said he was here for seven minutes."

01:23:17 — **Melano:** "Yeah plus we can't tell if—"

01:23:20 — **Melano:** "So I didn't circle in yet because I was doing my search first because he's on parole."

01:23:26 — **Melano:** "Let me sanitize my gloves, there was piss everywhere. Gross."

01:23:33 — **Melano:** "Yeah you want to start your warrant?"

01:23:34 — **Meza-Gonzalez:** "I could start the CLETS."

01:23:36 — **Melano:** "Start your CLETS yeah."

01:24:17 — **Melano:** "Any additional charges because he's on parole?"

01:24:17 — **Meza-Gonzalez:** "What's the parole for?"

01:24:21 — **Melano:** "'Cause he's supposed to be in prison, I don't think parole is. Actually there is a parole violation, that's says on. I don't know though."

01:25:24 — **Melano:** "Oh yeah it's gonna be a good partnership."

VIII. IMPLIED CONSENT ADVISEMENT (01:36:47 – 01:38:35)

01:36:47 — **Melano:** "Hey boss, um I'm gonna just read something for you OK?"

01:36:54 — **Melano:** "This is the implied consent advisement."

01:36:58 — **Plaintiff:** "Implied consent advisement."

01:37:00 — **Melano:** "Yes sir."

01:37:00 — **Plaintiff:** "It's not a Miranda right?"

01:37:02 — **Melano:** "No, no, no. Miranda rights we only give when we still wanna ask you questions about the investigation."

01:37:07 — **Plaintiff:** "OK."

01:37:08 — **Melano:** "We already have everything we need right? So we're not gonna read Miranda because we don't need anything. Uh this is different. This is a valid implied consent advisement."

01:37:08 — [Melano reads implied consent advisement.]

01:37:35 — **Plaintiff:** "A choice huh?"

01:37:37 — **Melano:** "Yeah. Blood or breath?"

01:37:39 — **Plaintiff:** "Now when you say required by law, what does that mean?"

01:37:32 — **Melano:** "So you're required by law like you have to do it."

01:37:34 — **Plaintiff:** "And what if I don't?"

01:37:36 — **Melano:** "If you don't do it we're gonna get it anyways. It says it's going to be with a warrant and you're gonna automatically lose your license."

01:37:42 — **Plaintiff:** "Yeah we've already been through this man."

01:37:45 — **Melano:** "Well I don't know, I just got back in the car. I haven't talked to you about it."

01:37:46 — **Plaintiff:** "Sorry, sorry. Yeah we've already been through this."

01:37:49 — **Melano:** "Oh OK."

01:37:50 — **Plaintiff:** "Officer Meza and uh we're good to go."

01:37:53 — **Melano:** "About what? So you already told him which one you want?"

01:37:57 — **Plaintiff:** "Yeah. Officer Meza didn't fill in. I'm sorry your name officer sir?"

01:38:01 — **Melano:** "Oh Melano sir."

01:38:02 — **Plaintiff:** "Officer Meza he didn't fill officer Melano in on it?"

01:38:06 — **Melano:** "So which one are we doing sir? I'm asking you here."

01:38:08 — **Melano:** "Neither?"

01:38:09 — **Plaintiff:** "Yep."

01:38:10 — **Melano:** "OK so we're getting a warrant and we're gonna... so we're doing a warrant and we're gonna do it."

01:38:18 — **Plaintiff:** "I mean that's what Officer Meza said."

01:38:30 — **Melano:** "OK perfect, so you do understand though?"

01:38:35 — **Melano:** "I mean it's a yes or no question sir. In that sense you're saying yes. So you could we're gonna get the warrant, then we're gonna do it and then OK perfect. I just want to make sure you

understand. Thank you."

IX. TRANSPORT AND CASUAL CONVERSATION (01:44:21 – 01:57:10)

01:44:21 — **Melano:** "We'll put your battery in the Tesla. Is there an alternator? Well there's a battery but there's no alternator."

01:44:28 — **Meza-Gonzalez:** "No alternator."

01:44:29 — **Melano:** "No? What keeps the battery charged then?"

01:44:34 — **Melano:** "That's a good question huh?"

01:44:37 — **Melano:** "Boss do you think your car has an alternator or nah?"

01:44:40 — **Plaintiff:** "I don't think electric vehicles have alternators."

01:44:42 — **Melano:** "That's what I'm saying 'cause it doesn't get—"

01:44:43 — **Meza-Gonzalez:** "The alternator is used to start up the car."

01:44:47 — **Melano:** "No, the battery is used to start the car. The alternator—"

01:44:53 — **Plaintiff:** "Teslas have motors."

01:44:54 — **Melano:** "Oh. Dual motors. That part OK."

01:44:57 — **Plaintiff:** "They get charged up."

01:44:59 — **Melano:** "They don't need to be recharged?"

01:45:01 — **Plaintiff:** "Just like your phone gets charged."

01:45:02 — **Melano:** "Oh that's why you have a charger."

01:45:04 — **Meza-Gonzalez:** "Yeah."

01:45:05 — **Melano:** "And that's why the cars have an alternator 'cause the cars don't get charged."

01:45:27 — **Plaintiff:** "That's why you have a supercharger 'cause you take your car to it and charge it back up so you can drive it."

01:45:37 — **Plaintiff:** "Just like your phone."

01:45:37 — **Melano:** "Yeah thank you. I'm not a—"

01:45:45 — **Melano:** "Hey so I'm gonna put a paper in your bag that says when the vehicle is stored OK?"

01:52:05 — [Squad car leaves the scene with Plaintiff.]

01:57:10 — [Squad car arrives at the Santa Rita Jail, Dublin CHP transfer.]

— END OF TRANSCRIPT —

DECLARATION OF AUTHENTICITY

I, Brendan Ngehsi Newanforbi, declare under penalty of perjury under the laws of the State of California that the foregoing transcript is a true, accurate, and complete transcription of the California Highway Patrol dashcam video and audio recording from the incident of November 1, 2024, CHP Case No. RJ68845.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: June 18, 2026

/s/ Brendan Ngehsi Newanforbi

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